

Exhibit C

IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF OHIO
WESTERN DIVISION

AMERICAN COLLOID COMPANY, :

Plaintiff, :

:

-vs-

:

No. 3:22-cv-01342

FIRE STAR ENERGY RESOURCES, :

LLC,

:

Defendant.

:

- - - - -

Videotaped Deposition of ARIC WENTZ, a witness
herein, taken by the Defendant as upon
cross-examination before Lori L. Delhees,
Stenotype Reporter and Notary Public in and for
the State of Ohio, at the Regus Office, 1715
Indian Wood Circle, Suite 200, Maumee, Ohio, on
Friday, April 14, 2023, at 8:59 a.m., pursuant to
Notice.

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ALSO PRESENT:

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1 VIDEO OPERATOR: We're on the record.
2 The time is 8:59. Today's date is April 14,
3 2023.

4 This is unit No. 1 of the video
5 recorded deposition of Aric Wentz, in the matter
6 of American Colloid Company versus Fire Star
7 Energy Resources, LLC, filed in the United States
8 District Court for the Northern District of Ohio,
9 Western Division, Case No. 322-cv-01342.

10 My name is Alex Cook representing
11 Veritext. I'm the videographer. The court
12 reporter is Lori Delhees from the firm Veritext.

13 Will counsel please state their
14 appearances for the record, and we can have the
15 court reporter swear in the witness.

16 MR. HUNTER: Barry Hunter on behalf of
17 the Defendant.

18 MS. RATHKE: Sarah Rathke and Lauryn,
19 L-A-U-R-Y-N, Durham, D-U-R-H-A-M, for the
20 Plaintiff.

21 VIDEO OPERATOR: Would the court
22 reporter please swear in the witness.

23 THE REPORTER: Raise your right hand
24 please.

25 Do you swear or affirm the testimony

1 you're about to give will the whole truth and
2 nothing but the truth?

3 MR. WENTZ: I do.

4 THE REPORTER: Thank you.

5 CROSS-EXAMINATION OF ARIC WENTZ

6 BY MR. HUNTER:

7 Q Sir, please state your full name and office
8 address for the record.

9 A My full name is Aric Wentz. Office address is 35
10 Highland Avenue, Bethlehem, Pennsylvania 18017.

11 Q And you're employed by American Colloid Company?

12 A That's correct.

13 Q I'll refer to it as ACC.

14 A That's correct.

15 Q We've had a chance to introduce ourselves before
16 the deposition, but just to formally do it for
17 the record. My name is Barry Hunter, and I
18 represent Fire Star Energy Resources.

19 Have you had your deposition taken
20 before?

21 A I have not.

22 Q Okay. You've had an opportunity to discuss the
23 procedures with your counsel?

24 A I have, yes.

25 Q Okay. You understand that you're under oath and

1 the court reporter is doing her best to take down
2 what you say verbatim?

3 A I do.

4 Q And you understand that what you say in this room
5 could be used as evidence under certain
6 circumstances at our court proceeding?

7 A I do.

8 Q Okay. With that in mind, I want to ask you to do
9 your best to make sure that you understand my
10 question before answering. You can ask me to
11 repeat or rephrase at any time.

12 If you answer a question without asking
13 me to repeat or rephrase, we will assume you
14 understood the question and answered accordingly,
15 fair enough?

16 A That's fair.

17 Q Okay. Is ACC headquartered in Bethlehem?

18 A In Bethlehem, our various business units under
19 the corporation Minerals Technologies is
20 headquartered. So ACC, I believe our official
21 address may be listed in the State of Illinois,
22 but I represent ACC in my official capacity as
23 supply chain director for that part of our
24 corporation.

25 Q Okay. And is that your role at the company?

1 A My role includes that -- that oversight of our
2 supply chain, yes.

3 Q What's your actual position?

4 A Supply chain director for Minerals Technologies,
5 part of which my responsibilities covers the
6 American Colloid Corporation.

7 Q Okay. And American Colloid is -- is it a wholly
8 owned subsidiary of Minerals Technologies?

9 A It is.

10 Q Okay. How many employees are there at Minerals
11 Technologies, if you know?

12 A Are you referring globally? Globally I'm not
13 entirely aware. It's in the thousands.

14 Q Okay.

15 A But I don't have the latest figure.

16 Q What about ACC?

17 A Again, I don't have the exact figure as far as
18 ACC is concerned as a subsid of that.

19 Q Okay. What is ACC's business? What does it do?

20 A There are a few businesses that are encompassed
21 under ACC. One of which is selling foundry sands
22 into the foundry and casting industry, and
23 specifically that is what the operation of
24 Archbold, Ohio is pointed towards.

25 Q Okay. Selling foundry --

1 A Foundry sands for the purpose of making castings
2 at foundries.

3 Q And what are foundry castings?

4 A It's a mold of sorts that is used to cast
5 different parts that are made at a foundry. Say,
6 for instance, an engine block, a -- various
7 different iron and steel parts that will go into
8 heavier equipment, automotive, those sorts of
9 things.

10 Q Okay. And you all make the molds?

11 A We make material that is used to make those
12 molds.

13 Q Okay. Do you make the molds at the plants or --

14 A We do not.

15 Q Okay. What materials are used to make the molds?

16 A I'm not fully aware of all the ingredients, but
17 among them one of which is coal, and the No. 1 is
18 a bentonite product as well.

19 Q And I'm sorry?

20 A Bentonite clay.

21 Q Okay. What other businesses, besides making
22 foundry castings, does ACC have?

23 A The only other business that I'm aware of that
24 operates under the ACC banner is our pet care
25 business.

1 Q Is?

2 A Pet care, specifically pet litter.

3 Q And what is that?

4 A Making pet litter for --

5 Q Oh. Pet litter?

6 A -- domesticated house -- household pets.

7 Yes.

8 Q Okay. And ACC makes these foundry castings and
9 pet litter out of various different plants
10 throughout the country; is that correct?

11 A That's correct.

12 Q Okay. And one of them is in Archbold, Ohio?

13 A The Archbold, Ohio plant specifically makes the
14 castings products.

15 Q Okay. And that's here in Toledo, in the Toledo
16 area?

17 A West of here.

18 Q Okay. How far west?

19 A I believe it's about an hour west.

20 Q Okay. And how many employees are there in the
21 Archbold plant?

22 A I'm sorry, I'm not aware of how many employees we
23 have.

24 Q Okay. How many other plants make foundry
25 castings?

1 MS. RATHKE: I'll object to the
2 foundation, founding castings -- foundry casting
3 products.

4 THE WITNESS: These foundry casting
5 products that -- like the ones that are made at
6 Archbold -- if you give me a moment I can count
7 in my mind just so I have this because it's
8 always about my recollection.

9 But we have Archbold, Belvidere,
10 Chattagooga, Neenah, Shell Rock --

11 BY MR. HUNTER:

12 Q What are the other plants --

13 A Okay.

14 Q -- as long as you're doing them?

15 A Yes. Sure. I always try to work geographically,
16 but I'll start on the east.

17 We have York, Pennsylvania. We have
18 Chattanooga, Tennessee. We have Archbold, of
19 course. We have Belvidere, Illinois. We have
20 Shell Rock, Iowa; Neenah, Wisconsin; Albion,
21 Michigan; and Troy, Indiana.

22 How many did I give you there? Was it
23 eight?

24 BY MR. HUNTER:

25 Q One, two, three, four, five, six, seven, eight.

1 A Okay.

2 Q And all of those plants, like Archbold, make
3 foundry casting products?

4 A Of various grades, yes.

5 Q Okay. Do all those plants use coal in making
6 these products?

7 A Yes.

8 Q Okay. And are they all similar products as those
9 that are made at Archbold?

10 MS. RATHKE: Objection to form.

11 THE WITNESS: If you can refer to how
12 similar they are in terms of what respect. End
13 market use or composition?

14 BY MR. HUNTER:

15 Q End market use.

16 A Yes, they all service to some degree castings in
17 the found -- found -- excuse me -- foundry
18 industry.

19 Q Okay. Is the composition different?

20 A It does vary by location in terms of some of the
21 ingredients and some of the grades of the
22 ingredients.

23 Q Okay. Do they all use the same type of coal?

24 A No.

25 Q Okay. What other plants use the same type of

1 coal as Archbold?

2 A We don't have --

3 MS. RATHKE: Hold on just one second.

4 I'm going to object to beyond the scope
5 of agreed to, non-objected to Rule 12(B)(6)
6 topics. With that said, the witness is free to
7 answer in his own capacity.

8 MR. HUNTER: Okay. Understood. I
9 mean, they weren't agreed to, but I do know --

10 MS. RATHKE: Well, I objected and then
11 entertained my objection.

12 MR. HUNTER: I understand.

13 THE WITNESS: The plants all have a
14 unique coal grade to one degree or another,
15 depending on the attributes of the coal.

16 The plant that has the closest -- the
17 closest coal that looks and feels and -- and has
18 similar attributes to the Archbold plant is our
19 Belvidere, Illinois plant.

20 BY MR. HUNTER:

21 Q Okay. What do you do with the coal? Do you burn
22 it?

23 A No. The coal --

24 Q Okay.

25 A -- is ground and introduced into the final

1 product so that it can become an ingredient in
2 the mixture.

3 Q So it's never burned?

4 A Never burned. Although I'm not entirely sure to
5 what extent it's -- nothing in our process, no --

6 Q Okay.

7 A -- at what you're referring to there.

8 Q Okay. I noticed, at least with Archbold coal,
9 it's a fairly high BTU, low sulfur product. And
10 I'm wondering why if you're not burning it does
11 that matter?

12 A The BTU is not as important to us as the sulfur
13 content.

14 Q Uh-huh.

15 A Sulfur content is extremely important to our
16 process, but especially to our customers in terms
17 of the -- at high sulfur levels it will create
18 surfaces defects for our customers, and they're
19 our finished products.

20 Q Okay. But the coal isn't burned. It's just
21 pulverized and put into the foundry casting
22 products?

23 A Correct.

24 Q Okay. And it's just one of the components of
25 those products?

1 A Correct.

2 Q Okay. What type of companies do you sell your
3 products to?

4 MS. RATHKE: The same objection.
5 Beyond the non-objected-to scope.

6 MR. HUNTER: Okay.

7 MS. RATHKE: But the witness is free to
8 answer in his personal capacity.

9 THE WITNESS: In my personal knowledge,
10 foundry is the closest or the most narrow way
11 that I can define the type of customers that we
12 sell to.

13 BY MR. HUNTER:

14 Q Okay. Other than the Belvidere plant, you're
15 telling me that the coal varies in different
16 plants.

17 Does it vary by BTU and sulfur content,
18 or is it more the size, or all of those?

19 A Primarily about the size.

20 Q Okay. And what difference does the size make?

21 A The size is an attribute that will vary dependent
22 on the plant's capacity to grind the different
23 sizes. Therefore, it needs to be specified
24 according to the plant's production capabilities
25 with their grinding equipment.

1 Q Okay. What exactly does the plant do to the
2 coal? I mean, it grinds it?

3 A It grinds the coal and mixes it into our finished
4 product.

5 Q Okay. And what type of equipment do you use to
6 grind it, a grinder?

7 A I have not -- I have not visited our plants at
8 this point in time, unfortunately, with not
9 traveling much recently.

10 I understand there's a grinding unit,
11 but beyond that I'm not fully aware. I can -- I
12 don't want to make any assumptions about their
13 process.

14 Q That's all I could have understood anyway.

15 MS. RATHKE: I guess I should have
16 objected there anyway to -- beyond the -- the
17 witness is free to testify in his personal
18 capacity.

19 BY MR. HUNTER:

20 Q Okay. Okay. When did you join ACC?

21 A Minerals Technologies acquired American Colloid
22 Company in 2014. I've been with Minerals
23 Technologies since 2002.

24 Q Okay. And how long have you been in your current
25 position?

1 A In my current position, since 2016.

2 Q Okay.

3 A And it was in 2020 that I began oversight of the
4 supply chain function for the American Colloid
5 Company.

6 Q And before 2020, was it for other divisions of
7 MTI?

8 A It was.

9 Q Okay. What did you do before 2016?

10 A Prior to 2016, I was in a supply chain department
11 straight back to the year 2005 in various
12 capacities. Most recently as a manager before
13 being a director and other positions prior to
14 that.

15 Q But now you're the head of that department?

16 A I have -- yes, the head of the supply chain for
17 the American Colloid Company.

18 Q Okay. And who do you report to?

19 A The vice president, now supply chain group
20 president.

21 Q And who is that?

22 A His name is Brent Argirakis.

23 Q Is that an officer-level position at the company,
24 do you know, that you hold?

25 A I'm not aware.

1 Q Okay.

2 A I --

3 Q So your first involvement with Fire Star was in
4 2020 when you became the supply chain head for
5 ACC; is that correct?

6 A That's correct.

7 Q Okay. Okay. I think you told me the Albion
8 plant is located in Michigan.

9 A That's correct.

10 Q Okay. And it makes foundry casting products like
11 Archbold?

12 A It does.

13 Q Okay. And it also grinds coal for those
14 products?

15 A It does not.

16 Q Okay. Where does it get its coal from?

17 A The Archbold plant --

18 Q Okay.

19 A -- has always ground for the Albion plant.

20 Q Okay. So coal is delivered to Archbold.
21 Archbold grinds it and then sends the ground
22 product to Archbold?

23 A Correct.

24 Q Okay.

25 A And to Albion.

1 Q I'm sorry. Thank you.

2 And how long has that been going on?

3 A For --

4 Q Since before your time?

5 A -- as long as I've been involved. And as far as
6 I'm aware, based on the conversations with Neil
7 Miller, for instance, who is the plant manager at
8 the Archbold plant, as far back as anyone can
9 remember.

10 Q Okay. So does that mean that Albion coal is
11 included in the coal claim by ACC as an Archbold
12 requirement?

13 A That's correct.

14 Q Okay. Okay. And approximately how many tons a
15 month is used for Albion?

16 A I don't have that figure. Unfortunately I don't
17 know that.

18 Q How can we get that?

19 A That's something that we can look at historic
20 rates of shipments between the two locations.

21 Q Right.

22 But you would -- I mean, somebody
23 could -- would have a record of how much of the
24 Archbold coal went to Albion in any given year?

25 A Correct.

1 Q Okay.

2 A We would have what I believe would be an internal
3 transfer record of what that work in progress
4 looks like after the coal has been transformed
5 through grinding from the Archbold plant to
6 Albion.

7 Q Okay. And I think what you're telling me is that
8 the Fire Star coal would have gone to Albion in
9 2021 and 2022?

10 A The Fire Star's coal would have gone to
11 Archbold --

12 Q Right.

13 A -- been transformed, like it has been
14 historically --

15 Q Right.

16 A -- at the Archbold plant. And then the work in
17 progress ingredient would have been transferred
18 on to Albion.

19 Q And you're telling me that would have been true
20 prior to 2021 as well?

21 A Yes.

22 Q Okay. I think you told me the Belvidere plant is
23 in Illinois.

24 A That's correct.

25 Q Okay. And it uses the same sort of coal as the

1 Archbold plant?

2 MS. RATHKE: Object to form.

3 MR. HUNTER: What's wrong with the
4 form?

5 MS. RATHKE: Ambiguous. I don't know
6 what "the same kind of coal" means.

7 THE WITNESS: The same sort in what
8 respect? Are you referring to BTU com --

9 BY MR. HUNTER:

10 Q Spec. Size. I thought you told me it was
11 like --

12 A They use -- they use a similar size --

13 Q Okay.

14 A -- in that respect. But there are other
15 attributes about the coal that Belvidere needs
16 that -- their process is less forgiving than the
17 plant in Archbold.

18 Q So what -- what attributes are different?

19 A To my knowledge, they have different tolerance
20 for moisture, and their coal is probably the one
21 that's most prominent.

22 Q Stricter? It has to be dryer?

23 A Yes.

24 Q Okay. And where does Belvidere get its coal
25 from?

1 A Belvidere sources coal from various suppliers,
2 and that's been a changing sourcing approach
3 strategy that we've had since I've been involved.
4 And if I understand correctly, it was multiple
5 suppliers prior to that as well.

6 Q Different suppliers than the Archbold suppliers?

7 A Sometimes they have overlapped.

8 Q Uh-huh.

9 Okay. It does its own grinding,
10 Belvidere?

11 A It does.

12 Q Okay. Does it sometimes get coal from Archbold?

13 A Yes.

14 Q Okay. When?

15 A Archbold by rule is a plant within the ACC system
16 that will fill gaps when other plants have issues
17 to one degree or another. And, therefore,
18 Archbold in my experience has provided coal to
19 multiple plants --

20 Q Okay.

21 A -- in the past few years, in my experience. And
22 if I understand correctly, it's been the case
23 prior to that as well.

24 Q Okay. And what is it about Archbold that makes
25 it a gap filler?

1 A It has --

2 Q Lots of grinders?

3 A -- capability to capacity.

4 Q Okay.

5 A Yeah, it's a -- it's -- capacity-wise, it has the
6 ability to -- to support the entire system, and
7 that's been its role as to working for us.

8 Q Okay. And are gaps things that happen when
9 there's some type of problem or shortage at the
10 other plants?

11 A It could happen for a number of reasons.

12 Q Like?

13 A It can be a malfunction at the plant, or it can
14 be an issue with some of the ingredients, and
15 that can include the coal. And that's the one
16 that I've seen the most prominent, is when
17 there's an issue with the coal.

18 For instance, at our Troy plant when
19 they had a problem with their --

20 Q I'm sorry. You know, I -- I should wear my
21 hearing aids.

22 A Your hearing. I'm sorry, I speak low as well.

23 In a particular case at our Troy plant,
24 there was an issue with the silo that stores
25 their coal so that they weren't able to use it.

1 So the Archbold plant would grind coal for them
2 and send it down there.

3 Q Did you say Troy?

4 A Troy, Indiana, yes.

5 Q Okay. Okay. So from time to time in '21 and
6 '22, Fire Star coal was ground at Archbold and
7 then sent to Belvidere?

8 A There was a period of time in 2022 that I'm aware
9 that tons were sent directly from -- no. I'm
10 sorry.

11 Understanding your question better,
12 that it was ground at Archbold and sent directly
13 to Belvidere. I'm not aware of that happening in
14 2021 and 2022.

15 Q Okay. But you are aware of it going direct from
16 Fire Star to Belvidere?

17 A Correct. There was a period of time in the first
18 part of 2022 when the Archbold plant was slowed
19 down in their capacity because they were
20 purchasing cover coal due to the lack of supply
21 from Fire Star. That they didn't have the
22 wherewithal to grind for Belvidere plant, so tons
23 were arranged to ship directly to the Belvidere
24 plant.

25 Q Okay. Why would the Belvidere plant -- was there

1 a problem at the Belvidere plant? Why did it
2 need coal?

3 A The Belvidere plant at that point in time did not
4 have enough quality supply to meet --

5 Q Enough?

6 A Supply of quality coal to meet their
7 requirements.

8 Q From its own suppliers?

9 A Correct.

10 So in that situation, traditionally
11 Archbold would have ground for them, like they do
12 for other plants. But unfortunately their
13 capacity to reduce in such a way because of the
14 quality of the cover coal that we were purchasing
15 that they didn't have the ability to make that
16 grinding, so instead the coal was redirected to
17 the Belvidere plant.

18 Q The quality wasn't good enough of the cover coal?

19 A That's correct.

20 Q Okay. And you're saying -- what -- over what
21 period did that occur where Belvidere wasn't
22 getting enough coal so it needed to get coal from
23 Archbold or others?

24 A I believe it occurred between February and April
25 of 2022.

1 Q Okay. And other than that, during the period '21
2 and '22, was there other times when Archbold was
3 helping out Belvidere as a gap filler?

4 A Not that I'm aware of.

5 Q Okay. But there would be records that would show
6 that?

7 A There very well may be, yes.

8 Q Okay. And I think you're telling me that would
9 have happened in the past? That happens from
10 time to time where Archbold supplies ground coal
11 to Belvidere?

12 A I don't have a personal knowledge of it
13 happening. I've been to -- I -- you know, the
14 Archbold plant does that for a number of other
15 plants in the system.

16 Q Okay. Okay. And one of them I think you've told
17 me is the Troy plant?

18 A That's correct.

19 Q Is that also Tell City, or are those different?

20 A Tell City is a warehouse location on the river
21 system where the coal is traditionally warehoused
22 for the Troy plant.

23 Q Okay. Is it right there, or is it a --

24 A It's very close. And we typically try to do that
25 for freight logical reasons from a call

1 standpoint.

2 Q And Troy is in Indiana?

3 A That's correct.

4 Q Okay. And Troy as well has been -- gaps in the
5 Troy supply of coal has been filled by Archbold
6 from time to time?

7 A The one that I specifically know about occurred
8 during the summer of last year when they had a
9 silo failure.

10 Q Okay. And the silo failure was what? What --
11 what does that mean? Why does that affect the
12 coal supply?

13 A In June we became aware of a defect in the silo
14 that made it unsafe to use moving forward to --
15 to store and unload coal. So that -- until that
16 was fixed, they could no longer process their own
17 coal.

18 Q So that was a problem with the storage rather
19 than the grinding?

20 A That's correct.

21 Q But the storage made it so you couldn't grind
22 coal there?

23 A The storage made it so that we could not
24 introduce coal for grinding.

25 Q Okay. So Troy does grind its own coal?

1 A It does.

2 Q Okay. But Troy is another one of those plants
3 that Archbold from time to time has served as a
4 gap filler for and supplied ground coal to?

5 A That's correct. It's in our system, and Archbold
6 plays that role for our system.

7 Q And you know of one in the summer of 2022. There
8 might have been others earlier, you don't know?

9 A There absolutely may have been others earlier.

10 Q Okay.

11 A I know of these specific incidents.

12 Q And there would be records that would show that?

13 A I believe there should be, yes.

14 Q Okay. Okay. So the Belvidere coal -- I'm
15 sorry -- the Troy coal would have been included
16 in coal claimed by ACC as an Archbold
17 requirement?

18 A That's true.

19 Q Okay. Is that true of the Belvidere coal too?

20 A The Belvidere coal?

21 Q The coal that went to Belvidere.

22 A Was -- no. The Belvidere coal was shipped
23 directly from Fire Star, therefore, it was not a
24 coal that had to be covered at the -- at the
25 Archbold location.

1 Q Okay. But in your numbers where you're counting
2 the total amount of coal delivered by Fire Star,
3 you're including the coal that went to Belvidere,
4 right?

5 MS. RATHKE: Object to the form.

6 THE WITNESS: Our numbers -- where I
7 thought you were going with that question was our
8 numbers about our total counts of cover coal that
9 we purchased.

10 We have numbers on the total amount of
11 coal that was delivered by Fire Star.

12 BY MR. HUNTER:

13 Q Right.

14 A And that's correct. There's 270 tons -- 271 tons
15 of coal during that February through April time
16 period of 2022 that would have come from Fire
17 Star to the Bellevue plant.

18 Q Okay. Only 271 total?

19 A That's correct.

20 Q Okay. You don't know how much of the Fire Star
21 coal went to Albion and went to Troy?

22 A No.

23 Q Okay.

24 A Because all that went to the Archbold plant as
25 part of their normal requirements.

1 Q Okay. Any other plants that Archbold supplies
2 ground coal to?

3 A On a regular basis, Albion is the one that I know
4 about happens on an absolutely regular basis.

5 Q Uh-huh.

6 A On an ad hoc basis, the Troy experience is the
7 most recent one that I can point to. But I
8 understand, again, from my conversations with
9 Neil Miller, the plant manager, that historically
10 it has happened for other plants in the system.

11 Q Okay. And so we've mentioned Troy, Belvidere,
12 Albion. Any others that you can think of that
13 they would have supplied? Would it have been
14 those eight that you -- well, I guess seven that
15 you mentioned?

16 MS. RATHKE: Object to form. Compound
17 and ambiguous as to time period.

18 THE WITNESS: Yes. It's -- again, my
19 recollection is limited to some extent from my
20 involvement --

21 BY MR. HUNTER:

22 Q Right.

23 A -- you know, since the late second-half period of
24 2020. And right now my recollection is that it
25 was the Troy plant in the middle of last year,

1 and on regular basis the Albion plant.

2 Q Okay. How do you bring coal into Archbold? Is
3 it all by truck or --

4 A That's correct.

5 Q Okay. No barge, no rail?

6 A Not that I'm aware of through my involvement.
7 Barging is not possible because of lack of river
8 logistics to make it happen. I'm not aware of
9 any rail shipments.

10 Q Okay. About how much coal is there in a truck
11 load, do you know?

12 A 25 tons, if I understand correctly.

13 Q Okay. And do you know approximately how much
14 coal is purchased a year by the Archbold plant?

15 A The Archbold plant --

16 MS. RATHKE: Object. Beyond the scope
17 of the 309b)(6), but the witness is free to
18 answer in his personal capacity to the extent he
19 knows.

20 THE WITNESS: My understanding, the
21 Archbold historically hasn't been in the 15,000
22 to 20,000 ton per year range of coal normal
23 requirements.

24 BY MR. HUNTER:

25 Q Okay. In 2021 it looked like it was around

1 12,000, does that sound right to you?

2 A I'm not familiar with the 2021 figure. I'm
3 sorry.

4 Q Do you know of any reason why 2021 would have
5 lower?

6 A There was a -- no. No. Not that I can think of
7 because -- other than potentially that there was
8 a hangover pandemic effect in our business that
9 we know as very real in 2020, and it may have
10 bridged over into 2021. But there's nothing else
11 that for us would have caused our overall goal
12 requirements in 2021, that I'm aware of, to have
13 gone lower.

14 Q The 15,000 to 20,000 a year number you gave me,
15 is that approximately how much it uses as well?

16 MS. RATHKE: Object to the form.

17 BY MR. HUNTER:

18 Q The Archbold plant.

19 MS. RATHKE: The same objection.

20 THE WITNESS: Uses in terms of grind?

21 BY MR. HUNTER:

22 Q Processes and grinds, yes.

23 A Yes.

24 Q Okay.

25 A Yes.

1 Q Okay. I mean, it uses it up, right? Whatever it
2 does, it grinds it and then it sends it away,
3 right?

4 A Correct.

5 MS. RATHKE: Objection to form.

6 BY MR. HUNTER:

7 Q What's the storage capacity at the Archbold
8 plant, do you know that?

9 MS. RATHKE: Objection. Beyond the
10 scope of the 30(b)(6).

11 But go ahead and answer.

12 THE WITNESS: My general understanding
13 is that at any given point in time they have
14 about 1,000 tons in storage that they rotate.

15 BY MR. HUNTER:

16 Q Okay. And is that right at the plant, that --

17 A It is.

18 Q -- storage facility?

19 A Yes.

20 Q It's just kind of like a aluminum warehouse
21 building or --

22 A It's a shed, yes.

23 THEREUPON, Defendant's Exhibit 1 was marked for
24 identification.

25 BY MR. HUNTER:

1 Q Okay. So Exhibit 1 is a printout of a document
2 that you all produced as Excel Bates No. 292.
3 And it was -- it had tabs for every month during
4 the year -- during the years 2021 and 2022. And
5 I've printed off each of the months but only a
6 portion of the page just because it was getting
7 too busy. And I've printed off kind of the left
8 side of the Excel sheet, which was the, as you
9 can see, the date, the truck number, in, out, and
10 the -- the end-of-the-month-end inventory.

11 Is this a document you're familiar
12 with?

13 MS. RATHKE: Object to the form and
14 completeness of Exhibit 1.

15 MR. HUNTER: Well, I'm telling you it's
16 not complete. I mean, I --

17 MS. RATHKE: It seems like you agree
18 with my objection then.

19 MR. HUNTER: Well, I think it's a fair
20 document, but it is not the entire Excel sheet
21 that you gave me.

22 BY MR. HUNTER:

23 Q And all I'm trying to find out is, are you in the
24 position to say that this is a normal course
25 document that you all prepare and that it's

1 accurate?

2 A I -- I don't recall seeing this document
3 specifically, but I understand what it is and
4 what it's meant to convey in terms of the stock
5 totals, inventory, changes, whether it be through
6 deliveries or production depletions of our
7 inventory.

8 Q Okay. And what it purports to do is, it purports
9 to list every load in and how much was -- how
10 much was ground by the plant on each day or each
11 kind of particular designated day?

12 A Yes.

13 Q Okay.

14 A Primarily speaking, yes. And that results in the
15 changes in the stock total.

16 Q Okay. And the stock total is just kind of what's
17 in inventory at the end of the day --

18 A Correct.

19 Q -- or the end of the month?

20 A Uh-huh.

21 Q Okay. And is this a document you're familiar
22 with being prepared in the normal course?

23 A No. This would be something that I have not seen
24 to this point in time. I understand it can be
25 compared -- prepared, excuse me, with through our

1 system. And through, you know, ten seconds of
2 looking at it, I understand what it's trying to
3 convey, but I have not seen this type of report
4 previous to this.

5 Q Okay. And as far as you know, it has all the
6 different suppliers? Like if you look later on,
7 you can see RIF -- RFI coal, Pincello coal?

8 A Sorry. I'm just paging through to reference the
9 time periods that it carries through.

10 Q And I'll withdraw the question. If you don't
11 know the document, it's fine.

12 Is this something that would be
13 prepared at the plant rather than at a more
14 central office, do you know?

15 A I believe it can be prepared at both --

16 Q Okay.

17 A -- on a -- on a needed basis. I'm not aware that
18 this is prepared as a regular course of business.

19 Q Okay.

20 A I think it's on ad hoc as need basis.

21 Q Okay. Is there input into a computer system kind
22 of on a regular basis that enables one to print
23 out a report like this?

24 MS. RATHKE: Object to form.

25 THE WITNESS: Are you referring to a

1 computer system, meaning something like our ERP
2 system, for instance?

3 BY MR. HUNTER:

4 Q Yes.

5 A Correct. That's where I would assume this comes
6 from.

7 Q Okay. Okay. You're good. It's fine.

8 A Yep.

9 Q Thank you.

10 THEREUPON, Defendant's Exhibit 2 was marked for
11 identification.

12 BY MR. HUNTER:

13 Q So Exhibit 2 is the 309b)(6) Notice of Deposition
14 that was filed in this case. You've seen this
15 be -- well, this is the objections that were
16 served to it.

17 Have you seen the list of categories
18 that ACC is being asked to address?

19 A I have.

20 Q And as I understand it, you're the designee for
21 all of them, or at least all of the ones that
22 weren't objected to?

23 A Yes.

24 Q Okay. What did you do to prepare to speak to
25 those issues?

1 A Reviewed the documents that were part of the
2 discovery for this case, and had personal
3 conversations with Neil Miller and another
4 gentleman who was head of sales and marketing for
5 our American Colloid Company that would have
6 information about requirements at the Fire --
7 Archbold facility.

8 Q And who was that?

9 A His name is Donald McLain.

10 Q And tell me again what his position is.

11 A He is at the head of sales and marketing for the
12 American Colloid Company as it relates to the
13 plants that service the foundry industry.

14 Q Okay. And he would have information -- or the
15 best information about the requirements of the
16 plants?

17 A He would have the best information about the
18 customer demand that drove requirements at the
19 plants, specifically at Archbold, the plants that
20 Archbold normally services.

21 Q Okay. About how many -- you said you reviewed
22 the documents that were produced in discovery.

23 A That's correct.

24 Q And you met with your counsel as well?

25 A That's correct.

1 Q Okay. About how much time did you spend in
2 preparing to address the topics?

3 A I spent four hours.

4 Q Okay. About how many differ -- how many pages of
5 documents do you think you looked at?

6 A Over a hundred.

7 Q Okay. What different documents?

8 A The documents that have been produced by way of
9 objections and Interrogatories, if I'm
10 pronouncing that correctly. But also purchase
11 order records of our cover coal -- of invoice
12 records of our cover coal.

13 I'm trying to think what else.

14 Communications with Fire Star.

15 Communications internally referencing Fire Star.

16 Q Have you produced all those, to the best of your
17 knowledge?

18 A Everything to my -- to the best of my knowledge,
19 yes.

20 Q Okay.

21 MS. RATHKE: I'd just -- objection.

22 There's no indication that the witness was
23 finished with his previous answer.

24 BY MR. HUNTER:

25 Q I'm sorry.

1 A The list of documents that we looked through. So
2 the cover coal. The invoices. The purchase
3 orders that I mentioned were relative to that.
4 The contract that we had with Fire Star covering
5 the time period of 2021 to 2022. Some of the
6 deliberations that we had leading up to the
7 contract being signed for 2021 start date.

8 Again, to the best of my recollection,
9 that's what's coming to my mind at this moment.

10 Q Okay.

11 A But there was a number of documents.

12 Q Where is -- so one of the people that appears on
13 the communications is Mike Wagner.

14 A That's correct.

15 Q Is he -- has he terminated from ACC?

16 A He resigned his position effective in September
17 of last year.

18 Q Okay. September of '22?

19 A That's right.

20 Q Was that voluntarily?

21 A It was.

22 Q Okay. Do you know where he is now?

23 A I believe -- I'm trying to recall in a text
24 message that he informed me.

25 I don't recall the name of the company

1 offhand. I believe it's a roofing products
2 company, if I remember correctly.

3 Q And is that in Bethlehem?

4 A No.

5 Q Where is it?

6 A I'm not certain where it is, and Mike was not
7 located at our Bethlehem office when he worked
8 for us.

9 Q Where was he?

10 A He was located in -- outside of Houston, Texas.

11 Q And as far as you know, he's still around there?

12 A As far as I'm aware, yes.

13 Q Okay. Did you talk with him in preparing for the
14 deposition?

15 A I did not.

16 Q What about Tom Reed?

17 A Tom Reed retired with us, and I believe that was
18 in January of 2021.

19 Q Okay.

20 A And would have been the manager of supply chain
21 that was personally negotiating the contract in
22 question for 2021 and 2022.

23 Q Did he leave voluntarily?

24 A He did. He retired.

25 Q Okay. Where is he now?

1 A I'm not aware of that.

2 Q Okay. Okay. So in item -- look at No. 4 on
3 page 2. So the response -- did you review this
4 before it was sent?

5 A I have.

6 Q Okay. So the response to items 4 and to 12 and
7 13 as well, is saying that -- that the, I guess,
8 the coal usage at Albion, Belvidere, and Troy
9 were their requirements don't really factor into
10 the claims in this case.

11 Is that true?

12 MS. RATHKE: Objection to the form and
13 the foundation.

14 THE WITNESS: If you're referring to
15 the requirements that they have that sometimes
16 are supplied by way of the Archbold plant, then
17 they become part of the normal requirements at
18 the Archbold plant.

19 Q Okay.

20 A Those plants have coal requirements of their own
21 on a regular basis for grinding that are not
22 something that we contemplated as part of this
23 suit.

24 Q Okay. But at least as far as coal that goes
25 from -- from Archbold to those different

1 plants -- Belvidere, Albion and Troy -- that
2 would be part of this case, wouldn't it?

3 MS. RATHKE: Object to the form.

4 THE WITNESS: If --

5 BY MR. HUNTER:

6 Q I mean, you're counting it as part of the
7 Archbold requirements, right?

8 A The coal that for various different reasons and
9 on a regular basis for the Albion plant, Archbold
10 as part of its normal requirements supplies to
11 these plants. Yes, it is part of this claim.

12 Q Okay. And you're telling me that what you know
13 about is Albion and Troy, during the '21 and '22
14 period that coal was ground at Archbold and sent
15 to -- to Troy and Albion? You don't know how
16 much, right?

17 MS. RATHKE: Object to form. Compound.

18 BY MR. HUNTER:

19 Q Correct?

20 MS. RATHKE: The same objection.
21 Compound.

22 THE WITNESS: I know of those two
23 locations.

24 BY MR. HUNTER:

25 Q Right.

1 A To answer that part of your question.

2 And no, I don't have the specific
3 amounts for either of those two plants.

4 Q And as far as you know with Belvidere, you're not
5 aware of any coal being ground at Archbold to go
6 to Belvidere, but you are aware of 272 or so tons
7 that were shipped direct from Fire Star to
8 Belvidere?

9 A I'm not personally aware of a number that was
10 ground at Archbold to Belvidere, but it very well
11 may have happened without my knowing about it.

12 Q Okay. Okay. And then on No. 15 on page 5, was
13 there a rise in demand for ACC products that --
14 in mid 2022 at the Archbold plant?

15 MS. RATHKE: Object to form.

16 THE WITNESS: If you are --

17 MS. RATHKE: Sorry. Go ahead.

18 THE WITNESS: -- specifically referring
19 to the Archbold plant for their products, meaning
20 their metal casting products going to foundry
21 customers, there was no meaningful change in the
22 middle of 2022 versus normal course of business.

23 BY MR. HUNTER:

24 Q Okay.

25 A Any change in the amount of coal needed at the

1 Archbold plant during that time period would have
2 most specifically been related to the coal that
3 they had to cover for the Troy plant.

4 Q Okay. Okay. And I think you might not have
5 a lot of knowledge on this background and it
6 is -- I have some questions about the background
7 of the dealings with Fire Star.

8 But do you know when ACC first acquired
9 coal from Fire Star?

10 MS. RATHKE: Object. Beyond the scope
11 of the 30(b)(6).

12 But go ahead on your -- in your -- with
13 your personal knowledge.

14 THE WITNESS: Based on my personal
15 conversations with Neil Miller, I believe it has
16 been a 15-year-long relationship.

17 BY MR. HUNTER:

18 Q Okay. And has been for Archbold the whole time?

19 A It's been specifically in his knowledge for
20 Archbold, although they have supplied other
21 plants during the time period.

22 Q Okay. They supplied Chattanooga?

23 A We had a contract with Chattanooga, and there
24 were spot sales to Chattanooga for a period of
25 time that ended in the middle of 2021. And I

1 can't recall exactly how far back it goes before
2 that.

3 Q The contract ended in the middle of 2021, didn't
4 it?

5 A In August of that year, I believe, correct.

6 Q Okay. And you were involved in those dealings?

7 A I was not involved in the negotiation of that
8 contract. I was involved in administration of
9 that contract until its termination.

10 Q Okay. Can you think of any other than Archbold
11 and Chattanooga --

12 MS. RATHKE: Object to form.

13 BY MR. HUNTER:

14 Q -- that Fire Star supplied coal to?

15 A I don't recall having looked at our records what
16 other plants there would be besides those two
17 plants and -- as I mentioned, for those 271 tons
18 that were sent to the Belvidere plant in between
19 February and April of last year.

20 Q When you got involved at the end of 2020 in the
21 Fire Star relationship, does that --

22 A It was August of that year that I assumed
23 responsibility for this part of the MTI supply
24 chain.

25 Q When you became involved, as far as you know, was

1 it a good relationship?

2 A Yes.

3 Q Okay. And who was the guy who turned it over to
4 you, or the woman who turned it over to you?

5 A There was a woman that was at the head of
6 American Colloid Company supply chain, a similar
7 capacity as mine as director, that retired in
8 August of that year.

9 Tom Reed continued to manage it, as he
10 had managed it working for her prior to that --

11 Q Okay.

12 A -- until his retirement.

13 Q And who was the woman who turned that over?

14 A Her name is Laura Landau.

15 Q How do you spell that?

16 A L-A-N-D-A-U.

17 Q Okay. So the Complaint says that everything was
18 good until Fire Star posed that fuel surcharge in
19 March of 2022. Is that a fair kind of
20 encapsulation of the relationship, do you think?

21 A There were earlier issues that we had relative to
22 quality in 2021 that caused issues in our
23 relationship with them.

24 But the issue that arose late in 2021,
25 which was the start of them not providing all of

1 our requirements, all of our typical
2 requirements, that was further exaggeration of
3 the issues.

4 Q Okay. Weren't there other problems like about
5 payments that came to a head in the middle of
6 2021, especially with the Chattanooga plant?

7 A Not that I'm aware of with regards to Chattanooga
8 in the middle of 2021.

9 Q Okay. You don't recall a fairly heated phone
10 call that you had with -- with the Joneses about
11 payment and kind of tempers flaring and you guys
12 being fairly aggravated with each other?

13 A I had a phone call with Dwayne, I believe, and we
14 were discussing payments. I'm not certain that
15 they were even for the Chattanooga plant, to be
16 honest with you.

17 I just knew that they were payments
18 that at that point in time we were withholding
19 from them because of a quality issue that we had
20 in February and March of 2021 that caused us to
21 have to buy alternate coal while we put them on
22 quality hold until we could resolve that issue.

23 Q Did you determine after that call that you'd have
24 no further communication with them?

25 A No.

1 Q Okay.

2 A No. I don't think I made an absolute
3 determination that I would have no further
4 communication with them.

5 Q Do you recall directing others not to deal with
6 them anymore?

7 A I recall speaking with our team and saying that
8 we needed to confer internally to make sure that
9 we were on the same page in terms of
10 communicating with them.

11 Q Okay. You don't recall telling people that as
12 soon as you -- as your contracts expired, you
13 were getting rid of them as a supplier at that
14 time in the middle of 2011?

15 A That's different than -- I think you're asking
16 about communicating with them.

17 Q Right.

18 A So that our experience to that point in time was
19 sufficiently bad that I did not plan on doing
20 business with them in the future. That they had
21 in a sufficient enough way had breached their
22 contract at that point in time.

23 We served them a letter in early part
24 of 2021 from our internal counsel to say as much.
25 And that their relationship had -- had gone badly

1 enough that we anticipated we would not do
2 business in the future.

3 Q Okay. And so once the Archbold contract ran out
4 in 2022, that was the end?

5 A That was my expectation.

6 Q Okay. And that was formulated around the time of
7 that telephone call in mid 2021?

8 A I believe that I had indicated individuals
9 already in 2021 that this relationship and their
10 behavior had caused us, that we would not want to
11 do business, and again, specifically in areas of
12 the contract that we believe they had breached as
13 early as 2021.

14 Q Okay. And specifically what were those areas?

15 A Not supplying coal that was on specification, and
16 not indemnifying us for the cost associated with
17 coal that we had to produce, provide to their
18 Archbold plant during the time period while we
19 resolved their quality issue.

20 Q Okay. And that was -- that was in what you're
21 claiming to have been 2021 breaches, right?

22 A Yes.

23 Q Okay.

24 A We alerted them in 2021 that we had high sulfur
25 results and that we needed to understand how it

1 occurred.

2 Q And you're telling me that there were lawyer
3 letters that were sent to them?

4 A There was.

5 MS. RATHKE: Objection to foundation.

6 MR. HUNTER: I'm sorry. He told me
7 there were lawyer letters sent to me, and I'm
8 asking him.

9 BY MR. HUNTER:

10 Q So you're telling me there were lawyer letters
11 sent to me?

12 MS. RATHKE: Thank you.

13 MR. HUNTER: And you're objecting to
14 foundation?

15 MS. RATHKE: Yes.

16 MR. HUNTER: Okay.

17 MS. RATHKE: Thank you.

18 THE WITNESS: I'm not certain that
19 anything was sent to you. There was a letter
20 sent to Fire Star by our internal counsel.

21 BY MR. HUNTER:

22 Q Okay.

23 A I don't recall the date precisely in 2021.

24 Q Is that something you can get and get to your
25 counsel so it could be produced in this case?

1 MS. RATHKE: It has been produced.

2 THE WITNESS: Yes. I would agree, yes,
3 we have produced it.

4 BY MR. HUNTER:

5 Q Okay. Who was the counsel that sent it?

6 MR. HUNTER: I don't think it has.

7 MS. RATHKE: It has.

8 BY MR. HUNTER:

9 Q Okay.

10 A I believe I signed a letter. It was prepared by
11 our internal counsel.

12 Q Ah.

13 Okay. And this was alerting Fire Star
14 to a breach of the quality specs in early to mid
15 2021?

16 A That's correct. A breach and their -- alerted
17 them to the fact that we would retain the right
18 to make them accountable for the cost that we
19 incurred because of that breach.

20 Q Okay.

21 MS. RATHKE: The Bates -- the Bates
22 labels of that production -- of that letter are
23 ACC304 to 305.

24 MR. HUNTER: Okay. I missed it.

25 BY MR. HUNTER:

1 Q And what happened after you wrote that letter?

2 A We received no response.

3 Q Okay. And did you do anything to follow up?

4 A My one phone call that I recall with Dwayne Jones
5 asked him primarily two things. What, No. 1,
6 that they had determined was the cause of the
7 quality failure? Which they could not determine
8 a cause for it. And No. 2, what they were
9 prepared to do to offer us to cover the cost that
10 we incurred to cover that time period during
11 which we had quarantined their supply to us.

12 Q Okay.

13 A And he offered us zero compensation for that.

14 Q And is that part of what led you to decide you
15 were going to get rid of them as a supplier?

16 A It was one of the factors.

17 MS. RATHKE: Sorry. Object to
18 foundation.

19 BY MR. HUNTER:

20 Q And I think you're telling me that your concerns
21 with the quality of the Fire Star coal is what
22 led you to hold back payments?

23 A There was a specific cost that we incurred to
24 supply those tons that were not supplied from
25 Fire Star until we could reconfirm the quality of

1 their coal. And I held the payments to cover
2 that amount roughly.

3 If I recall correctly, it was about
4 \$100,000. And some of my discussions -- one of
5 my discussions specifically with Dwayne was about
6 payment of that, that I believe you're referring
7 to, in 2021.

8 Q Okay. You ended up paying it?

9 A We ultimately did, yes.

10 Q Okay. Did you decide the quality was okay?

11 A The -- the way that we were able to begin
12 supplying again was that Fire Star indicated that
13 they had bulldozed the pile of coal that
14 previously existed that was supplied to us from
15 which we got a test result that was very high in
16 sulfur. Established a new stockpile. We sampled
17 from that stockpile, and the sulfur result came
18 back within spec again.

19 So we started supply again, but also
20 maintain a regular sampling from that point
21 forward to make sure that we kept a close eye on
22 it.

23 Q And did you use that coal that you complained
24 about ultimately?

25 A That was used, yes.

1 Q Yes.

2 A By the time that we get a test result, often
3 times through our internal laboratory, the
4 material has made its way through production.

5 Q So all that coal about which you complained was
6 ultimately used in your products?

7 A It was, to my knowledge, yes.

8 Q And ultimately paid for just beyond the 30-day
9 term?

10 A Correct.

11 Q Okay. There's a lot of correspondence that
12 reflects that you all thought that Fire Star's
13 coal was really good, right?

14 MS. RATHKE: Object to form.

15 BY MR. HUNTER:

16 Q I mean, you did think that Fire Star's coal was
17 high quality?

18 A What time period? From which individuals are you
19 referring to?

20 Q Well, did you think that Fire Star's coal was
21 high quality, the best coal that you got at the
22 Archbold plant?

23 A We did business with Fire Star on the expectation
24 that they had met our expectation.

25 Q Okay.

1 A Similar to how we do business with everyone else.

2 Q Okay. Now can you answer my question.

3 Didn't you think in 2021 and 2022 that
4 the Fire Star was the best coal that you were
5 getting for Archbold?

6 MS. RATHKE: Object. Are you asking if
7 that's what Aric thought?

8 MR. HUNTER: Yes.

9 THE WITNESS: No, I can't say that
10 specifically. Again, the best coal. That's a
11 very broad statement.

12 I -- at that point in time prior to
13 this incident that we're referring to, which very
14 early in 2021, I thought that they had good coal
15 that was meeting our requirements.

16 BY MR. HUNTER:

17 Q And you thought that after that incident too,
18 right?

19 A That later on the Fire Star coal had recovered
20 its quality, like I referred to you based off of
21 the bulldozing and stockpile and replacing it.

22 And then there's probably further
23 correspondence between myself and others to say
24 that yes, comparable to other coal that we were
25 using for cover in a very difficult coal market

1 in 2022, that they still had a very high quality
2 coal.

3 THEREUPON, Defendant's Exhibit 3 was marked for
4 identification.

5 BY MR. HUNTER:

6 Q Exhibit 3 is an Excel chart that was produced to
7 us under Bates 594. And it looks like it's your
8 chart of different deliveries from Fire Star
9 during the period 2021 to 2022.

10 Is it a chart you're familiar with?

11 A Yes, I'm familiar with this.

12 Q Okay. And what's the chart showing?

13 A The chart is showing the -- in a primary way, the
14 location to which the coal was delivered, the
15 date, the amount of the invoice that covered that
16 delivery, and the invoice number that we paid it
17 and what particular payment details, in this
18 case, check numbers, and if there was a purchase
19 order match for those shipments.

20 Q Okay. And it enables us to see how long it was
21 between the invoice date and the payment date,
22 right?

23 A It does.

24 Q Okay. And the terms of your contracts with Fire
25 Star were 30 days, right?

1 A That's correct.

2 Q Okay. What's the introduction date?

3 A I'm not familiar with introduction date.

4 Q Okay. So it looks like -- and I'm looking at
5 payment dates.

6 Okay. I'm looking at invoice number --
7 it's about ten down -- 4828, 4810, 4836.

8 A I'm sorry, which column are you referring to?

9 Q Under invoice number. There are various --

10 A Invoice number.

11 Q -- invoices in the middle of 2021 --

12 A Uh-huh.

13 Q -- from Chattanooga -- 4828, 4810, 4840, 4844,
14 4853, 4865 -- that reflect, you know, a
15 significant lag beyond the 30 days. Do you see
16 that?

17 MS. RATHKE: Object to form.

18 THE WITNESS: I see invoices that
19 during this time period were beyond the 30-day
20 terms.

21 BY MR. HUNTER:

22 Q Was this the invoices you're telling me about
23 that were withheld because of quality problems?

24 A It's likely that some of those are.

25 Q Okay.

1 A Absolutely. It was during the exact time period
2 that we have done this.

3 Q Okay. And are you telling me that it was at
4 Chattanooga or at Archbold, or both?

5 A I was agnostic about the invoice. It was about
6 the amount for us that we had open in the system
7 for them. So I would have chosen invoices at
8 that time that approximated the cost that we
9 incurred to buy cover coal during the time period
10 that we had the quality issue.

11 Q Okay. And the Chattanooga contract ended in
12 mid 2021?

13 A Yes. I believe the contract specifically went
14 through August --

15 Q Okay.

16 A -- of not a full month, but sometime -- it was an
17 odd date in the middle of 2021.

18 THEREUPON, Defendant's Exhibit 4 was marked for
19 identification.

20 BY MR. HUNTER:

21 Q Okay. Exhibit 4 is kind of a similar chart. It
22 was produced under Bates 216. And I've printed
23 off -- it was another Excel, and I've printed off
24 two of the tabs. One was a tab called "Supplier
25 Support List," and the other one was a tab

1 called -- just called "Albion," which is on
2 page 2. And if we could look at the one on
3 page 2.

4 Is this a document or a chart you're
5 familiar with?

6 MS. RATHKE: Object to foundation.

7 THE WITNESS: The specific callout of
8 the chart on page 2 versus a chart on page 1, I'm
9 not understanding any distinction that would
10 refer to Albion. I'm familiar with the chart --
11 BY MR. HUNTER:

12 Q I didn't mean Ambion. I'm sorry. I meant
13 Archbold.

14 A Okay.

15 Q Sorry.

16 A I'm familiar with the chart that references
17 payment dates and number of dates payable with
18 according to those dates.

19 I'm not seeing the -- I'm not
20 understanding or recollecting a distinction
21 between the first list and the second list, at
22 least on my review at the moment --

23 Q But at least looking at page 2, you're familiar
24 with this chart?

25 A Yes.

1 Q Okay. And is it an accurate reflection of the
2 number of days that it took to pay the invoice?

3 A Yes.

4 Q Okay. So what this reflects is that at least
5 versus the 30-day term of the contract, you all
6 were late in paying virtually every invoice,
7 right?

8 A Yes. That's the case based off of our normal
9 accounts payable scheduling practice. It had
10 been the case as far as I'm aware historically
11 with Fire Star during this contract, prior to
12 this contract.

13 There are instances on this report that
14 specifically call out in 2021 those invoices that
15 were being held.

16 Q I'm sorry. Where does it call those out?

17 A The ones that to me appear to be those invoices
18 were those that had invoices dates payable at 69,
19 52, and 51 during the early part of 2021.

20 Q What about the 197?

21 A The 197 I'm not familiar with.

22 Q Okay. Okay. What is the highlighting for, if
23 you know? Do you see it at the bottom, the
24 one -- the invoices say March 23, April 4, and
25 April 27?

1 A I don't know why those are highlighted.

2 Q Okay.

3 A Other than the fact those may be involved in the
4 fuel surcharge component that was added in March
5 of 2022 to our invoices and caused invoices to be
6 paid much later than normal.

7 Q Okay. Okay. So I hear you telling me that the
8 reason that there were late payments were it was
9 always done that way because of your accounts
10 payable system?

11 A Our accounts payable system, if we have 30-day
12 terms and those terms come due on the one day a
13 week that our accounts payable department pays,
14 we'll pay to that date and be current with the
15 30 days.

16 If the date is due one day later, it
17 will bump to the next week, which will in
18 variably cause it to be late. If it's due one
19 day before, we'll pay it the following week which
20 will invariably cause it to be late.

21 So there's a natural inclination for
22 these invoices to all be a few days late, at the
23 very least. Which had been the case with Fire
24 Star for all of these -- for a vast majority of
25 these.

1 Q Okay. But we can see that there are a number of
2 them that are more than a few days late, right?

3 A Specifically those in the early part of 2021,
4 yes, that I was holding, and those in the early
5 part of 2022 that got caught up in the invoice
6 exception process for us when they included a
7 fuel surcharge that was not being approved
8 correctly during a period of time that stretched
9 between March and June of 2022.

10 Q And when you say not being approved directly, you
11 mean by the accounts payable system?

12 A Correctly is what I should have said. I'm sorry
13 if I misspoke.

14 But when we introduce an extra line
15 item to an invoice, then it has to be approved on
16 a case-by-case basis unless we've established a
17 mechanism for it to be done automatically.

18 There's a period of time between March
19 and June of 2022, after we were indicated by Fire
20 Star that we had to start paying a fuel surcharge
21 or else we would not receive tons, that we agreed
22 to this.

23 And it was added as a line item, and it
24 was held up, each of those invoices for one-off
25 approval, and that caused some of them to be

1 quite late --

2 Q Okay.

3 A -- until we fixed the issue in June of 2022.

4 Q Did the late payments have an impact, to your
5 knowledge, on Fire Star's deliveries?

6 A Those specific payments they called out in that
7 time period during March -- between March and
8 June of 2022, several correspondents that I saw
9 with Tim Jones indicated that they needed payment
10 for those.

11 Q Okay. And certainly they called out the late
12 payments in the spring of 2021, right, including
13 on that phone call you had with Dwayne Jones?

14 A He was absolutely interested in getting those
15 paid and did not agree with the reason that I was
16 holding them to be paid.

17 Q Okay. And those -- at least the position they
18 stated to you is they weren't going to deliver as
19 timely as they otherwise would have because of
20 your late payments?

21 MS. RATHKE: Object to the --

22 BY MR. HUNTER:

23 Q Correct?

24 MS. RATHKE: Object to form and
25 foundation.

1 THE WITNESS: You're, I believe, making
2 the assumption that there is a persistent
3 indication from them that they would not deliver
4 based on the late payments.

5 There was two cases in particular that
6 this occurred: During my conversation with
7 Dwayne Jones and in early 2021 about the three
8 that I was holding. And then, again, because of
9 this invoice exception issue that Tim Jones
10 pointed out in the early part of 2022.

11 Throughout the intervening time period
12 there was no persistent indication that the
13 invoice payment process was an impediment to them
14 to make a tons delivery.

15 Q But there was in those two incidences you just
16 referred to?

17 A In those two incidences they called us out, yes.

18 Q Okay. The agreement that you're suing on was a
19 requirement contract, right?

20 A That's correct.

21 Q To your knowledge, was it always requirements
22 contracts with Fire Star at Archbold?

23 A To my knowledge, I'm not aware.

24 Q Okay.

25 A I know we had prior contracts with them, but I

1 did not review those to see if they were
2 requirements contracts.

3 Q Okay. Is Archbold's current contract in 2023 a
4 requirements contract?

5 A We do not have the current contract. We are
6 buying on the spot market.

7 Q Okay. You're doing pretty well so far. You're
8 fine.

9 Coal has dropped a bit, right?

10 A It's begun to drop.

11 Q Yes.

12 A It's record levels in 2022.

13 Q Do your other plants have requirements contracts?

14 MS. RATHKE: Objection. Well beyond
15 the scope of the 30(B)(6).

16 But in his personal capacity, have at
17 him.

18 THE WITNESS: I cannot think of another
19 contract that we have in place currently as a
20 requirements contract, although they have had
21 those types of contracts from time to time.

22 BY MR. HUNTER:

23 Q Okay. Is it the exception rather than the rule,
24 or is it typically how you do business at your
25 plants?

1 A One of the logistics realities for us that causes
2 us to have a requirements contract versus one
3 that's not, tends to be a plant that is serviced
4 by a truck.

5 When you move quantities of coal by
6 barge, by train, it requires commitments with
7 logistics carriers that require specific
8 quantities to be mentioned in contracts.

9 Q Okay.

10 A When you can order five trucks one day and zero
11 the next or two the next, it allows for a more
12 fluid concept of what our requirements are.

13 Q Okay. And ACC's position is the requirements are
14 not only the requirements for the coal that
15 Archbold grinds, but also it's requirements for
16 coal it grinds for our plants, right?

17 A What you stated is "the coal that Archbold
18 grinds," the coal that Archbold grinds are the
19 requirements at the Archbold plant.

20 Q Whether it's for its product or for other plants'
21 products?

22 A That's correct.

23 Q Okay. In the contract it says that there is an
24 estimate that in 2020 the requirements will have
25 been around 18,000 tons. Do you recall that?

1 A That's correct. Uh-huh.

2 Q Okay. And do you know if at that time the
3 anticipation was that that would continue into
4 the future, around 18,000?

5 A It was.

6 Q Okay. And I think you're telling me that what
7 was anticipated was 18,000 not just for coal that
8 Archbold ground for its own products, but also
9 coal it ground for other plants as well?

10 A That's correct. Normal capacity at Archbold to
11 grind coal includes that that it does for other
12 plants from time to time.

13 Q How did you all communicate to Fire Star what
14 your requirements were like on a weekly or a
15 monthly basis?

16 A Normal mode of operation would be for our plant,
17 specifically our plant manager or someone that
18 worked for him, to reach out to them or to reach
19 out to their carriers and feed that information
20 back on a regular basis that we're going to need
21 so many loads tomorrow, so many loads next week.

22 And that's, if I understand correctly,
23 based on my conversations with Neil Miller, how
24 business had been done for quite a long period of
25 time and operated pretty well that way.

1 Q So it's kind of an informal exchange?

2 MS. RATHKE: Object to form.

3 BY MR. HUNTER:

4 Q I mean, was this oral, in writing or -- help me
5 understand.

6 MS. RATHKE: Go ahead.

7 THE WITNESS: If I understand
8 correctly, it was orally. It was either by
9 phone. But I'm sure there were text messages and
10 emails to support it as well from time to time.

11 BY MR. HUNTER:

12 Q Okay.

13 A But it occurred that way. And then purchase
14 orders were created to support those order levels
15 so that invoices could be paid efficiently.

16 Q Okay. So it was not only informally, it was also
17 by formal purchase order?

18 A Absolutely.

19 Q Okay.

20 A It needs to be that way so that we can
21 efficiently pay invoices and account in our
22 system properly.

23 Q Okay. And you said that you would let --
24 something you said caught my attention. You said
25 you would either let Fire Star know or the

1 carriers know. What do you mean? What do you
2 mean you'd let the carriers know?

3 A Carriers, because Fire Star was selling to us on
4 a delivered basis into our Archbold plant --

5 Q Right.

6 A -- operated, you know, in such a way that we
7 could indicate to them, as they're delivering to
8 us in a lot of cases, tomorrow we're going to
9 need -- again, based off of my conversations with
10 Neil Miller is my understanding, tomorrow we're
11 going to need X number of loads.

12 They go back, they plant a load that
13 the expectation was, as far as I understand it,
14 that they were relaying that information to Fire
15 Star in some way.

16 Q Okay. But the way -- and I've heard this as
17 well.

18 What you're telling me is that the way
19 that the requirements were communicated to Fire
20 Star was through the independent truckers that
21 was delivering the coal.

22 A On occasion, if I understand it correctly. It
23 wasn't the exclusive way.

24 Q But one of the ways?

25 A One of the ways.

1 Q And was it a particular truck, or just any
2 trucker who happened to drive in?

3 A That I'm not aware of. But I do understand that
4 there were some truckers that were ordinary and
5 usual and serviced that lane for long periods of
6 time.

7 Q This is something I can ask Neil about?

8 A I absolutely believe he would have --

9 Q Okay.

10 A -- much better information about that than I do.

11 Q Okay. Did the purchase orders have any kind of
12 contractual significance? I mean, I --

13 MR. RATHKE: Object to form.

14 BY MR. HUNTER:

15 Q It's not in the contract, but -- but just the way
16 that your system works, was there any
17 significances to the purchase orders?

18 MS. RATHKE: Object to form.

19 THE WITNESS: If you're asking if the
20 purchase orders had contractual terms and
21 conditions associated with it. Or if you're
22 asking -- I'm sorry. I'm just trying to
23 understand if you're asking if it's a functional
24 purpose for the purchase or something different
25 than that.

1 BY MR. HUNTER:

2 Q What was the significance -- there were purchase
3 orders that were issued from ACC to Fire Star --

4 A There needs to be.

5 Q -- right?

6 A In our ERP system, irrespective of whether we
7 have a contract that operates independently, that
8 contract in and of itself won't allow us to
9 receive the coal into our ERP system and then use
10 it to be depleted into our production and then
11 further paid for.

12 So you need to have a purchase order
13 for every single delivery that comes into our
14 plant.

15 Q And I say this with less confidence than I would
16 have, but for what happened a half an hour ago,
17 but I didn't see -- do you have the purchase
18 orders? Because I didn't see that those were
19 produced by you in this case.

20 A I have purchase orders for cover coal. I can't
21 recall whether or not I reviewed purchase orders
22 that were issued to Fire Star.

23 Q Okay. Wouldn't that be a document you would
24 normally have?

25 A It's a document that is produced through our

1 shared surfaces department and communicated with
2 Fire Star.

3 Normal mode of operation, if I
4 understand it to be correct, would be that we
5 would confirm with Fire Star after several
6 deliveries have been made between our plant, in
7 many cases, or plant assistant.

8 She would send an email to Tim Jones
9 indicating over this past week or these past two
10 weeks we received this many loads for this
11 quantity. We are now backing that up with a
12 purchase order and you can send your invoice
13 accordingly.

14 MS. RATHKE: I'm just going to object
15 to the -- we -- there are purchase orders in our
16 production, for instance, CACC89.

17 MR. HUNTER: I'm sorry? C --

18 MS. RATHKE: ACC89 is an example of a
19 purchase order in our production.

20 MR. HUNTER: Okay. But the purchase
21 orders in total weren't produced.

22 THEREUPON, Defendant's Exhibit 5 was marked for
23 identification.

24 BY MR. HUNTER:

25 Q So Exhibit 5 are the purchase orders that I am

1 aware of having been created in 2022. Can you
2 look at those and tell me -- and that's, I
3 believe, is one of the designations.

4 Can you confirm that that's the
5 entirety of that? That that is all of the
6 purchase orders that you all issued and delivered
7 to ACC -- I'm sorry -- to Fire Star in 2022?

8 A I'm aware of a purchase order for a requirement
9 delivering coal in the month of January
10 specifically that I was able to review that's not
11 included in this batch.

12 I can't confirm, to be 100 percent
13 honest, that is the full breadth of the purchase
14 orders that we issued in 2022.

15 Q Okay. And you saw a purchase order for January?

16 A Yes. It was issued, if I understand correctly,
17 at the end of December 2021 in anticipation that
18 our plant administrator was leaving on medical
19 leave. In which case we issued a purchase order
20 for quite a number of tons in January to make
21 sure that while she was out, we had something
22 open that allowed us to receive and pay during
23 that time period until she returned.

24 Q And do you recall how many tons that covered?

25 MS. RATHKE: That would be at ACC114 to

1 115.

2 THE WITNESS: If we had the document, I
3 might take a look at it to refresh my memory.
4 But it was for a larger number of tons than we
5 typically would do, again, as a backup in case
6 she wouldn't be back in time --

7 BY MR. HUNTER:

8 Q Okay.

9 A -- so that we wouldn't be able to add additional
10 tons if they were needed.

11 Q Okay. So it looks like, at least here, there
12 was -- there were four purchase orders in March,
13 April, May, and June for 800 tons each, right?

14 A Correct.

15 Q Okay. So that's a total of 32,000 tons?

16 A That's right.

17 And again, if you recall what I
18 mentioned about a normal course of doing business
19 with Fire Star, is that we would indicate to them
20 on an informal basis what our requirements were.
21 And after those requirements had delivered to us,
22 in much of the time when it first started in
23 2022, they were less than what we had indicated
24 informally we needed. We then would issues
25 purchase orders to cover those deliveries.

1 So it's my understanding that these
2 purchase orders were issued only for what they
3 were willing to send us during this time period.

4 Q Okay. So the purchase orders, as you understand
5 it, were simply intended to reflect what they had
6 delivered?

7 A That's -- yes, correct. How we had done business
8 with them.

9 THEREUPON, Defendant's Exhibit 6 was marked for
10 identification.

11 BY MR. HUNTER:

12 Q Okay. And it looks like in Exhibit 6 is a sample
13 of purchase orders for 2021. And while there are
14 quantities on these purchase orders, at the
15 bottom it says,

16 "Neil will let Dwayne know how many
17 loads we can accept each week."

18 Is that consistent with what you're
19 telling me that whatever the purchase order said,
20 it was just done informally?

21 MS. RATHKE: Objection to foundation.
22 It is not accurate that each of the documents
23 within Exhibit 6 says that.

24 MR. HUNTER: Actually -- oh, I see what
25 you're saying. There -- there -- there is one

1 that doesn't. I apologize.

2 THE WITNESS: My understanding is that
3 although we would often times issue the purchase
4 order retroactively, after the informal
5 communication was done about our requirements,
6 that there were possibilities and occasions where
7 we would issue the purchase order in advance.

8 So there's a good possibility that some
9 of these purchase orders from 2021 were issued in
10 advance, in which case the instruction on some of
11 them, not all of them, would have indicated that
12 here's your purchase order. This is the P.O.
13 number against which you're going to bill us, but
14 within the time period here our plant manager,
15 Neil Miller, will reach out and indicate to you
16 how many he needs.

17 BY MR. HUNTER:

18 Q Okay.

19 A So that it may or may not result in this full
20 600 ton quantity on one of these documents, for
21 instance.

22 Q So ACC didn't consider these purchase orders
23 controlling, if I understand what you're saying?

24 MS. RATHKE: Object to the foundation
25 and form.

1 THE WITNESS: That would have depended
2 on a situation. It's --

3 BY MR. HUNTER:

4 Q With Fire Star.

5 MS. RATHKE: The same objection.

6 THE WITNESS: Fire Star, the situation
7 with them was -- was not entirely unique
8 necessarily. It's a way that sometime businesses
9 contracted -- or excuse me -- administered so
10 that -- that if we had a fluid situation and one
11 that worked for a number years with the plant at
12 Archbold, where they could communicate
13 informally.

14 And for a period of time, there was
15 never a question about when we communicated
16 informally about what we would receive from them
17 until we got into the year of 2021, when that
18 system broke down to a certain extent, and we
19 didn't receive the quantities that we requested
20 from them.

21 BY MR. HUNTER:

22 Q 2021 or 2022?

23 A Started already in 2021.

24 Q Okay. When in '21?

25 A Roughly during the fourth quarter of 2021 is when

1 we had to start buying cover cold because we
2 could not get our full requirements from Fire
3 Star.

4 Q So it actually dated back to 2021, when the
5 problems started?

6 A It started then, yes.

7 Q Okay. So in 2021 you had this severe quality
8 problem, in early 2021, that led you to decide
9 you weren't going to do business with them
10 anymore.

11 And then in the fourth quarter of 2021
12 they weren't delivering what you say were your
13 requirements, right?

14 A I indicated earlier, based on your question, that
15 our quality issue with them and their response to
16 it was so poor that we felt as though they had
17 breached their agreement. And for that reason,
18 we weren't going to carry on past our current
19 contract with them.

20 And then the relationship deteriorated
21 beyond that, including in late 2021 when they
22 were not meeting our full requirements.

23 Q Okay. Do you want to keep going or take a break?
24 We've been going an hour and a half. I'm good
25 either way. It's up to you.

1 VIDEO OPERATOR: I was just about to
2 say, I'm going to need to change the memory card
3 in about five to ten minutes, so if now is a good
4 time?

5 THE WITNESS: Yes. Yes. Sure.

6 MS. RATHKE: Yes. I guess he has to
7 take a break, so --

8 THE WITNESS: Yes. Absolutely.

9 MS. RATHKE: Okay.

10 MR. HUNTER: Okay.

11 THE WITNESS: Okay.

12 VIDEO OPERATOR: We're going off the
13 record. The time is 10:23. This is the end of
14 media unit number 1.

15 THEREUPON, there was a brief recess.

16 THEREUPON, Defendant's Exhibit No. 7 was marked
17 for identification.

18 VIDEO OPERATOR: We are going back on
19 the record. The time is 10:35. This is the
20 beginning of media unit No. 2.

21 BY MR. HUNTER:

22 Q So, Mr. Wentz, I'm showing you what I've marked
23 as Exhibit 7, and it's American Colloid's
24 responses to written discovery.

25 A Uh-huh.

1 Q Keep looking at the back. That's your signature
2 affirming the truth of the answers?

3 A I'll check.

4 Yes, it is.

5 Q Okay. Just let me ask you a couple things about
6 it.

7 On Interrogatory 2 on page 3 --

8 A Yes, sir.

9 Q -- it is asking about communications regarding
10 requirements, and you list -- specifically under
11 "Subject Matter," you list email requirements for
12 like a number of specific periods.

13 A That's correct.

14 Q Is it -- have you seen emails setting forth what
15 your requirements are for those periods?

16 A Yes. The emails that I've seen, and without
17 knowing which one of these in particular fits
18 this function, would be those that were sent from
19 Rachel Perkins to Fire Star to indicate the
20 number of loads to bill against for the
21 particular purchase orders.

22 Q Okay. That's different in your -- I think your
23 position is to bill against as opposed to what
24 your requirements are, right?

25 MS. RATHKE: Object to the form.

1 BY MR. HUNTER:

2 Q I mean, you saw emails that reflected what they
3 delivered, right?

4 MR. RATHKE: Had required.

5 THE WITNESS: That's correct. They're
6 one and the same in the way I'm treating them.

7 The requirements in the particular case
8 of Ms. Perkins reaching out and saying that these
9 tons delivered. Tim, you can go ahead and bill
10 against this purchase order. That was
11 represented in our requirements for that period
12 of time. They were only done retroactively.

13 And again, this has been the normal
14 course of business, as I understood it, between
15 ACC and Fire Star. It worked well that way, and
16 we didn't encounter any transactional issues
17 doing it, and seemed to support the normal
18 communication about what we need on an informal
19 basis that preceded that.

20 BY MR. HUNTER:

21 Q And that worked through when?

22 A That worked through the end of 2000 -- up until
23 latter part of 2021 when we started to not be
24 able to get the tons that we needed --

25 Q Okay.

1 A -- from them.

2 Q So I hear -- I think I hear what you're telling
3 me, which is this. When I look at those emails
4 that simply reflect what they delivered --

5 A Uh-huh.

6 Q -- you're telling me those were your requirements
7 up to a point?

8 A That's correct.

9 Q But then there came a point where what they
10 delivered weren't your requirements, and I'm
11 trying to figure out when that was.

12 A It started in October of 2021.

13 Q Okay. Are there emails that reflect that, do you
14 think?

15 A I don't recall specifically if there are emails
16 that reflected that.

17 Q Yes.

18 A That's the point in time when we needed to start
19 buying cover coal to account for the fact that we
20 did not get the tons from Fire Star.

21 Q But how is Fire Star supposed to know that
22 because you never told them about the cover,
23 right?

24 MS. RATHKE: Object to form and
25 foundation.

1 THE WITNESS: I can't presume how they
2 were supposed to know about it without, again,
3 having specific knowledge of the phone
4 conversations that may have taken place or
5 anything else during that time period.

6 BY MR. HUNTER:

7 Q And you haven't prepared yourself to address
8 that?

9 A I know through my discussions with Neil Miller,
10 that during that time period it started to break
11 down that when we indicated to them, through our
12 normal channels, that it worked up until that
13 point in time that they couldn't supply. And we
14 bought cover coal on the market to account for
15 the fact.

16 That cover coal that we purchased was
17 much more expensive all the way through the end
18 of 2022. Simply no financial justification for
19 us doing it had we not -- if we had --

20 Q Right.

21 A -- been supplied with that same quantity of coal
22 from Fire Star.

23 Q So here's what I'm looking for. I'm trying to
24 get you to tell me as specifically as you can how
25 your requirements were communicated to Fire Star.

1 And I've heard you say up until some
2 point when you started covering, what they
3 delivered were your requirements and you were
4 good with that.

5 A Uh-huh.

6 Q But then there came a point you're telling me
7 where they didn't deliver your requirements. And
8 what I want you to do as specifically as you can
9 is to tell me how you communicated the
10 requirements to them so they would know they
11 weren't meeting your requirements.

12 A Based on my discussions with Neil Miller --

13 Q Right.

14 A -- those requirements to them were being
15 communicated in our typical way at the end of
16 2021, which was through informally with them, to
17 either phone calls or some other means, perhaps
18 via the carriers. And it had worked, and then we
19 started to not get those tons from them in
20 October of 2021.

21 Q And then when you didn't get those tons from
22 them, according to what you're telling me now,
23 you didn't follow up with any kind of letter or
24 any kind of formal communication?

25 A Not that I'm aware of.

1 MS. RATHKE: Object to --

2 BY MR. HUNTER:

3 Q Why would that --

4 MS. RATHKE: Object to form and
5 foundation. And I would refer to ACC1005.

6 MR. HUNTER: Don't do that. Don't do
7 that.

8 BY MR. HUNTER:

9 Q Why -- why didn't you follow up?

10 MS. RATHKE: Object to foundation and
11 form.

12 THE WITNESS: We followed up with a
13 letter that was written at that point in time.
14 But I'm not aware of Neil Miller reaching out to
15 them specifically based off of his normal mode of
16 communication to say this is what we require for
17 the coming week, the coming two weeks.

18 And when they could not supply that,
19 I'm not aware of him having any discussions with
20 them to say why didn't you supply this. It very
21 well may have happened.

22 When we became aware of the fact that
23 we had to buy cover coal because we did not get
24 full requirements that we needed from them,
25 that's what prompted us through my office and

1 through my interactions with our internal counsel
2 to reach out to them again and say we have not
3 gotten what we need.

4 BY MR. HUNTER:

5 Q And that was in June?

6 A I -- no. I can't recall specifically when we
7 reached out with a communication to them, but
8 there was something from my office around that
9 time period.

10 Q Which time period?

11 A When we started to not get our full requirements
12 from them in late 2021.

13 Q Okay. And you've told me about that. There was
14 no follow up and you didn't follow up, right?

15 MS. RATHKE: Object to form and
16 foundation.

17 THE WITNESS: There was no response
18 from them.

19 BY MR. HUNTER:

20 Q Okay. And you didn't push it?

21 MS. RATHKE: Object to foundation.

22 THE WITNESS: It was perfectly clear to
23 us at that point in time that we weren't getting
24 what we needed from them. We requested it from
25 them.

1 I can't personally account for any
2 personal conversations that Mike Wagner would
3 have with them at that point in time. But more
4 than likely it was our -- it was our
5 understanding that they were unwilling to provide
6 those tons and that we would -- we would not be
7 getting them from them.

8 BY MR. HUNTER:

9 Q You have produced every single communication to
10 Fire Star reflecting your requirements and your
11 dissatisfaction -- dissatisfaction with their
12 deliveries; is that correct?

13 A That's right.

14 Q Okay. Interrogatory No. 3 at page 5, is it ACC's
15 contention that they offered to provide a letter
16 of credit or security of payment to Fire Star?

17 A This was something that we were willing to
18 consider through communications with our outside
19 counsel after the suit had been filed. There was
20 no request for a security of payment or adequate
21 assurance from Fire Star prior to us filing suit.

22 Q Okay. Are sure of that?

23 A There's no record that I can find where they
24 reached out to us prior to us filing suit and
25 required adequate assurance from us.

1 Q Okay. What I'm asking you is, did ACC offer to
2 provide a letter of credit or assurance of
3 payment to Fire Star?

4 Your counsel has represented to the
5 court that you all did. And I'm trying to find
6 out from you, as the designee, if that happened.

7 A If I understand correctly, it was part of a
8 potential final and best offer negotiation that
9 occurred by our outside counsel. And we were
10 willing to consider this contingent upon what the
11 final and best offer was from Fire Star.

12 Fire Star didn't simply insist that we
13 give an adequate assurance or security of payment
14 as part of that final and best offer. They
15 required us to pay an exorbitant in-market rate
16 in order to continue and settle the suit.

17 Q Okay. And again, I'm sure it's me, but I'm not
18 sure you're answering my question.

19 A Okay.

20 Q Did -- I don't want to know what you were
21 considering. What I'm asking you is, did you --
22 did ACC tell Fire Star that it was willing to pay
23 to give a letter of credit or assurance of
24 payment?

25 A I'm not certain that we made that offer

1 specifically. I believe, again, to the best of
2 my knowledge, we made that offer as part of our
3 negotiation about this case. That's the only
4 time period that I'm aware of that we had that
5 communication with them. But unfortunately it
6 didn't result in anything because it came along
7 with a price increase.

8 Q And you've seen the letters that were exchanged
9 in settlement negotiations, haven't you?

10 A Yes. Yes.

11 Q Okay. And --

12 MS. RATHKE: Hold on. Object -- I can
13 object. Hold on. Object to form and foundation.
14 Thanks.

15 Go ahead.

16 BY MR. HUNTER:

17 Q Okay. And you're telling me that you think that
18 you represented to Fire Star in those
19 negotiations that you all would give a letter of
20 credit or provide assurance of payment?

21 A I believe we indicated that that was something
22 that we were willing to consider.

23 Q Okay. On Interrogatory No. 4 -- which the answer
24 is on page 5 -- to the best of your knowledge,
25 are those numbers that you've given here in the

1 answer about what you required and received in
2 2021 was 10,555.73? Is that correct? Do you see
3 where you say that, "ACC required and received
4 10,555.73 tons in 2021"?

5 A I see this, yes.

6 Q Okay. Are you saying that the 10,555.73 is what
7 you required in 2021? I mean, that's what you're
8 saying. Is that what you meant to say?

9 A We required and received from them 10,555 tons,
10 yes. And that would have been the net of those
11 tons that we had to buy from cover coal suppliers
12 during that quality issue that we were having
13 with Fire Star.

14 Q So were you not saying that the requirement --
15 MS. RATHKE: Objection. Let him -- let
16 finish.

17 THE WITNESS: The tons that were
18 purchased from those cover suppliers were not
19 included in this figure --

20 BY MR. HUNTER:

21 Q Okay.

22 A -- to my best knowledge.

23 Q So -- but what you're saying here is ACC required
24 and received 10,555.73. And I'm asking you, are
25 you agreeing that that's all you required in

1 2021?

2 A The Archbold plant required more than that.

3 Q Okay.

4 A We had to purchase more tons than that from cover
5 suppliers during the time period when there was a
6 quality dispute regarding the material.

7 Q You just didn't put that in this answer?

8 A I didn't believe that it was included as part of
9 the question.

10 Q All right.

11 A The question was specific to that part of the
12 answer.

13 Q So you actually required more than 10,555.73
14 tons --

15 A That's correct.

16 Q -- in 2021?

17 Okay. And to get there, we just have
18 to add the cover coal?

19 A I believe that would be the calculation, yes.

20 Q Okay. And then you say that in 2022 they
21 delivered 3,247.81, and then adding in the cover
22 coal, your requirements were 15,599.96; is that
23 correct?

24 A That's correct.

25 Q Okay. And then at the bottom you say,

1 "The permissible increase in May 2022
2 was because of the rise of the demands for
3 ACC's product."

4 Do you see that?

5 A That's right.

6 Q Okay. Is that a true statement?

7 A It was rise and demand for the -- the products
8 that we were making, but the coal specifically
9 that was required to make products through the
10 Archbold plant.

11 Q Okay. If you had thought about that a little
12 more carefully, you would have worded it a little
13 different, don't you think?

14 A I think there's a way to word that so that it
15 represents the fact that we had a rise in demand
16 for the Archbold products that were being made at
17 the Archbold plant.

18 Q Well, actually what you had a rise in demand for
19 was the ground coal, right, not the product?

20 A That's correct.

21 THEREUPON, Defendant's Exhibit 8 was marked for
22 identification.

23 BY MR. HUNTER:

24 Q Exhibit 8 are texts that I received from your
25 production. And you refer to texts in your

1 Interrogatory answer, in your response to
2 Interrogatory 2.

3 Were these the texts that you're
4 referring to?

5 MS. RATHKE: Which Interrogatory
6 answer?

7 MR. HUNTER: 2. It's on page 4 and 5.

8 THE WITNESS: Yes. The text messages
9 that are included here are referenced. There
10 arguably is a text message that occurred on
11 Exhibit 8 later in June, on June 21st, that's not
12 referenced here.

13 But nevertheless, this was an ongoing
14 sort of discussion about what they could or, in
15 fact, were not supplying during the time period
16 in June.

17 BY MR. HUNTER:

18 Q Okay. Do you agree with me that the only
19 reference to a numerical requirement appears in
20 June, and it says 300 tons for the next week?
21 It's on 589 and 590.

22 A That's correct.

23 THEREUPON, Defendant's Exhibit 9 was marked for
24 identification.

25 BY MR. HUNTER:

1 Q Okay. Exhibit 9 are a couple of -- it's Bates
2 page 175 and 176. It looks like I have them in
3 reverse order. But this looks like memoranda
4 that are internal to ACC; is that right?

5 A That's correct.

6 Q This wasn't sent by Fire Star?

7 MS. RATHKE: Which one?

8 MR. HUNTER: 176 and 175.

9 MS. RATHKE: You think it's sent
10 to -- okay.

11 BY MR. HUNTER:

12 Q Am I right that these weren't sent to Fire Star?

13 A These were internal.

14 Q All right. Okay. So I think that 176 shows that
15 Albion's requirements were contemplated to be
16 included from the start. Do you see that on the
17 second kind of sub bullet point under "Volume"
18 and Value"?

19 A I do see that, yes.

20 Q Okay. So am I right that when you did this
21 contract, you contemplated that it would be coal
22 that Archbold ground for Albion?

23 A That's correct.

24 Q But there were no other plants that were
25 contemplated at that point?

1 A No, because those other plants usually happen
2 when there's an issue that's unforeseen.

3 Q Okay.

4 A So we anticipate that Archbold will have those
5 issues. We don't know specifically what they'll
6 be when we plan the requirements for the year.

7 Q Because Archbold doesn't typically grind for
8 Belvidere or for Troy?

9 MS. RATHKE: Object to the form.

10 BY MR. HUNTER:

11 Q Is that correct?

12 A If you mean typically on a regular cadence basis,
13 no. It's again on an ad hoc basis. When it's
14 required, our experience has been that those
15 requirements do come up from time to time.

16 Q ACC never told Fire Star that it was a -- its
17 intent to use coal to service the needs of other
18 plants, correct?

19 MS RATHKE: Object to foundation.

20 THE WITNESS: It's based on my
21 interactions with Neil Miller. That was well
22 understood with Fire Star over the course of the
23 years based on conversations that they had with
24 him and Dwayne Jones.

25 BY MR. HUNTER:

1 Q There's nothing in writing that you sort of chose
2 that, is there?

3 MS. RATHKE: I object to foundation.

4 THE WITNESS: There's nothing in
5 writing that I've seen to that. There is one
6 email in -- excuse me -- December of 2021 that
7 Tim Jones was copied on, I believe. That was an
8 internal communication that he happened to be
9 copied on. But it references the fact that
10 Archbold was grinding for another facility. I
11 don't recall which one.

12 BY MR. HUNTER:

13 Q Belvidere?

14 A I'd have to see that exhibit to understand it, to
15 remember correctly. It just references the fact
16 that Archbold was grinding and sending their
17 ground coal elsewhere.

18 Q And on 175 it -- on No. 2 it talks about you
19 adding a provision to a contract that gave Fire
20 Star right of first refusal under the contract.
21 Do you see that?

22 A That's correct. Uh-huh.

23 Q And that said that, as far as your subsequent
24 contract after this contract expired, they have a
25 right of first refusal to match the contract

1 offer?

2 A They had a right to match price that was being
3 offered to us for a subsequent supply from 2023
4 onward.

5 Q Okay. Forever?

6 A It was deemed for whatever time period that the
7 counterparty was offering. So typically in these
8 clauses, if someone is offering to supply you for
9 six months, they have the ability to match price
10 under that term of supply. If it's six years, it
11 would be under that term as well.

12 Q Okay. And I think you're telling me that there
13 have been no subsequent contracts?

14 A There have been no subsequent contracts for the
15 plant at Archbold.

16 Q Okay.

17 A Our last contract was with Fire Star at the end
18 of 2022.

19 Q Okay. If you do enter into a contract, are you
20 going to offer that to Fire Star?

21 A Our experience with this breach has caused us
22 to -- to not want to do business with Fire Star
23 in the future. I won't speak to what our future
24 conversation will look like with them at that
25 point in time.

1 THEREUPON, Defendant's Exhibit 10 was marked
2 for identification.

3 BY MR. HUNTER:

4 Q Okay. Exhibit 10 is the Complaint that you all
5 filed in this case.

6 Did you participate in the preparation
7 of this Complaint?

8 A I submitted information that was -- that was used
9 to prepare this Complaint, yes.

10 Q You reviewed it before it was filed?

11 A I have.

12 Q Okay. Who else participated in the -- on the ACC
13 side besides yourself?

14 A Primarily the individuals that are -- that are
15 noted when we served the case. Myself, Neil
16 Miller, and to a certain extent Rachel Perkins,
17 the plant administrator at Archbold, are the main
18 sources of information for this case at this
19 point in time in this Complaint.

20 Q And you carefully reviewed it before it was
21 filed?

22 A I did, yes.

23 Q Okay. You felt that it accurately set forth your
24 claims against Fire Star?

25 A Yes.

1 Q Okay. Have you changed your mind on what the
2 scope of your claims are since you filed the
3 case?

4 MS. RATHKE: Object to form.

5 THE WITNESS: Scope of claims relative
6 to financial compensation for cover coal?

7 BY MR. HUNTER:

8 Q Yeah. Sure.

9 A Is that what you're referring to specifically?

10 Q Sure.

11 A No. We've had a fairly straightforward approach
12 to how we -- how we calculated what we paid in
13 place of coal that we could not obtain from Fire
14 Star. The price that we paid for that multiplied
15 by the volume.

16 Q Okay. Well, there's nothing in this Complaint
17 about the 20 -- the 2021 breach, is there?

18 MS. RATHKE: Object to form and
19 foundation.

20 BY MR. HUNTER:

21 Q I mean, when you reviewed it before it was filed,
22 did you see anything about the 2021 alleged
23 breach?

24 A No, I did not.

25 Q Okay. Did that concern you at the time?

1 A No. At the time I understood, and I still
2 understand to this point in time, that the vast
3 majority of the breach occurred during 2022.

4 Q Okay.

5 A We had, if my memory serves me correctly, a few
6 purchases of cover coal during the 2021 time
7 period. But the vast majority of what took place
8 started to happen during the first part of 2022
9 and culminated into the very last delivery we got
10 from Fire Star, which was reflected in our system
11 on June 1, 2022.

12 Q And if you see in this Complaint, there's really
13 nothing in here before June of 2022 that's
14 alleged to be a breach. Do you see that? The
15 only order that's referenced that is alleged not
16 to have been filled is June 10, 2022.

17 MS. RATHKE: Objection to the form,
18 compound.

19 BY MR. HUNTER:

20 Q Do you see that?

21 A I see that that order specifically was called
22 out.

23 Q Uh-huh.

24 A This is the time period of when we started in the
25 very specific way, because of the noncompliance

1 to our normal course of doing business with them,
2 to send them very specific, detailed, beforehand
3 indications of what we were going to require
4 during the following weeks, and we've received no
5 response to that.

6 It was fairly obvious to us at that
7 point in time that we had an issue with them that
8 dated back as far 2021, and we needed to start
9 documenting very carefully what our future
10 requirements were going to look like.

11 Q Did it concern you at the time that there was
12 nothing in here about a breach prior to June of
13 2022 --

14 A I know --

15 Q -- you know, when you read it before it was
16 filed?

17 A I knew that we had reached out to them and
18 indicated to them about their inability to supply
19 coal to us during that time period. So I -- I
20 took that as being sufficient in terms of us
21 having made communication with them.

22 Q So you didn't think it was important to put it in
23 the Complaint?

24 A I felt as though this Complaint covered the
25 majority of what our complaint was against them

1 about their breach.

2 Q Does that mean the majority is from June 10, 2022
3 and forward? Is that what your complaint really
4 is?

5 MS. RATHKE: Object to the form.

6 Sorry.

7 THE WITNESS: Yes. My understanding of
8 us referencing that point in time in June is when
9 we officially determined that we were going to
10 file suit against Fire Star. That to me was the
11 culmination of we are receiving no supply from
12 them whatsoever moving forward.

13 We had some hopes, and you can see from
14 many email communications, that because of
15 resolving the payment issues that persisted
16 between March and June of 2022, that we were
17 going to start getting some supply from them
18 again. It just never occurred.

19 So that the absolute, complete
20 sensation of all deliveries in June of this past
21 year caused us to have 100 percent cover coal
22 from that point in time forward.

23 BY MR. HUNTER:

24 Q You reviewed the Complaint and you saw that all
25 it was claiming was, was an order starting in

1 June of 2022, right?

2 MS. RATHKE: Objection to form and
3 foundation.

4 BY MR. HUNTER:

5 Q Is that right?

6 A I saw that that was the specific order, specific
7 indication of our requirements that resulted in
8 really them giving us no supply moving forward
9 after that.

10 Q And at that point, for the purpose -- for the
11 reasons you told me, you were satisfied with that
12 Complaint?

13 A Yes.

14 Q So looking just quickly in paragraph 3. The
15 first sentence says,

16 "The Parties had an amicable history
17 until March of 2022."

18 That's what you told the Court, right?

19 A I believe our plant operated amicably with them
20 during that time period.

21 Q And certainly nothing in the Complaint calls out
22 any issues or claims prior to March of 2022, does
23 it?

24 MS. RATHKE: The same objection.

25 THE WITNESS: There's nothing here as

1 part of this Complaint that refers to them not
2 supplying all of our requirements prior to that
3 time period.

4 BY MR. HUNTER:

5 Q And what you call out about March of 2022 was
6 their imposition of that fuel surcharge, right?

7 A That's correct.

8 Q Okay. And you agreed to that fuel surcharge,
9 right?

10 A We were told that we would no longer get supply
11 unless we agreed to it.

12 Q Okay. You did agree to it, right?

13 A Yes.

14 Q Okay. How did you come up with a -- okay. On
15 page 3, those are the specs for the coal, is that
16 correct? Those are the correct specs at
17 paragraph 11?

18 A Those are the specifications that were listed in
19 the contract.

20 Q Okay.

21 A The contract had a typo in the sense that coal
22 was referred to as 2 inch by 1 inch.

23 Regular understanding by way of what
24 they supplied and what we accepted was, in fact,
25 something closer to a 4 inch by 2 inch product.

1 Q Okay. And that was okay with ACC?

2 A The 4 inch by 2 inch product was okay with us.

3 It was preferred actually.

4 Q Okay. You wanted a bigger coal?

5 A That's correct.

6 Q Okay. On paragraph 21 on page 4, you come up
7 with this \$351,000 in cost figure. Do you know
8 where you got that?

9 A That would have been the cover coal that we had
10 purchased. And the difference between the Fire
11 Star contract price and that cover coal unit
12 cost, multiply the number of tons of the cover
13 coal to that point in time.

14 Q Okay. Looking at Exhibit 1, the contract. And
15 this is the contract, right, Exhibit 1?

16 A Yes.

17 Q Paragraph 9 on page 2, that provision says that
18 before Fire Star can bill you, you have to weigh
19 the coal and send the weights to Fire Star,
20 correct?

21 A Those weights shall determine what we shall pay.
22 But it does indicate that payment is wrapped up
23 in or dependent upon us confirming the weight of
24 each delivery and confirming with them.

25 Q So -- so Fire Star couldn't invoice you until you

1 provided the weights, right?

2 A I think what this clause tries to do is to
3 capture that normal way of doing business with
4 them that we conducted to that point in time.

5 Q So is the answer to my question yes?

6 A Yes.

7 Q Okay. Was there a delay, at least as stated by
8 Fire Star, in you all providing the weights so
9 that they could provide you the invoice?

10 A I'm not clear on what they stated. I'm not aware
11 of any delays on our part to feed that
12 information back to them.

13 Q Okay. If you go to Exhibit 3 and 4.

14 MS. RATHKE: Located in the Complaint,
15 so it's in that document.

16 MR. HUNTER: I'm sorry.

17 MS. RATHKE: So keep paging forward.

18 THE WITNESS: Okay. Exhibit 3.

19 BY MR. HUNTER:

20 Q This is an email from Mr. Wagner to Fire Star,
21 and you and Mr. Miller are cc'd, right?

22 A That's correct.

23 Q Okay. Did you -- who was it that came up with
24 the language for this letter? Was it Mr. Wagner
25 or you, or did you all collaborate?

1 A My recollection is that -- that Mike Wagner came
2 up with this language and I believe referred --
3 conferred with inside counsel -- or outside at
4 that point in time. I can't recall exactly when
5 that started.

6 MS. RATHKE: Hold on. Just before we
7 get any further. I will instruct you not to
8 convey any information that discloses any
9 communications between folks at the -- inside or
10 outside counsel.

11 THE WITNESS: So Mike Wagner drafted
12 this language.

13 MR. HUNTER: But -- okay, but he can
14 tell me if he consulted with counsel.

15 MS. RATHKE: Sure. And he did.

16 MR. HUNTER: I just wanted to make sure
17 he knew that.

18 MS. RATHKE: And he did.

19 MR. HUNTER: I know. But then he said
20 Mike Wagner did this letter. I just want to be
21 clear going forward that if there were
22 communications with counsel, he can say it. He
23 just doesn't have to say what they were.

24 MS. RATHKE: Take it as a question, a
25 bad question basis. Moving forward.

1 BY MR. HUNTER:

2 Q Okay. The 2,391 tons of coal, how did you all
3 come up with that?

4 A It's my understanding that that was the
5 anticipated amount that the Archbold plant was
6 going to need to grind from that point forward.

7 Q Because half of that was going to have to go to
8 Troy, right?

9 A I'm not certain that half of it exactly was that
10 amount. To my recollection, some part of it
11 during that time period would have because of the
12 Troy requirement.

13 Q A fair characterization of that would be it was a
14 material part, don't you think?

15 MS. RATHKE: Object to form.

16 THE WITNESS: What would you
17 characterize as being material?

18 BY MR. HUNTER:

19 Q Over 1,000 tons.

20 A During this time period of one month, I would say
21 based off of my knowledge of the Troy plant
22 and their usual requirements --

23 (Fire alarm went off.)

24 THEREUPON, there was a brief recess.

25 VIDEO OPERATOR: Stand by. We're back

1 on the record. The time is 11:11.

2 THE WITNESS: Based on my knowledge of
3 what the Troy plant typically processes and
4 requires for coal, I would say during that
5 one-month time period, roughly speaking between
6 June 13th and July 13th, it would have been just
7 about a thousand tons.

8 BY MR. HUNTER:

9 Q Okay. And you didn't tell that to Fire Star,
10 right, that the 2,391 included approximately half
11 of the requirement being for Troy?

12 A No. Again, based off of my --

13 MS. RATHKE: Hold on. Object to
14 foundation and form.

15 MR. HUNTER: We'll, he's been
16 designated to speak to these issues.

17 MS. RATHKE: Yes. But that doesn't
18 like allow you to ask questions that are
19 objectionable as to foundation and form. So
20 that's not -- it's just like a --

21 MR. HUNTER: Well, foundation usually
22 means that he doesn't have the basis to answer.

23 MS. RATHKE: I mean, there's
24 improper -- your question presumes improper
25 information, so it lacks proper foundation. Not

1 that this witness lacks it. That's not an
2 objection.

3 A foundation objection is that it --
4 there is no foundation for the question and
5 factual predicate of the question.

6 BY MR. HUNTER:

7 Q Okay. Mr. Wentz, did ACC tell Fire Star that
8 1,000 of the 2,391 tons was being ground for
9 Troy?

10 A Not to my knowledge, no.

11 Q In fact, to the contrary, it told them that the
12 rise in tonnage follows a recent rise in demand
13 at the facility for its product, right?

14 A That's correct. One of those products being the
15 ground coal.

16 Q Okay. Well, that's not your product, is it?

17 A It's the product of the plant in Archbold, Ohio.

18 Q Okay.

19 A They produce a ground coal that is then sent to
20 other locations.

21 Q And you're telling this jury that you feel like
22 that's what you conveyed to Fire Star, that its
23 products meant that Archbold needed more coal
24 because it was grinding coal for another plant?

25 A Yes.

1 Q Okay.

2 A Yes. That was understood based off of prior
3 discussions that Neil Miller had indicated over
4 time that he had with Dwayne Jones, which is that
5 the plant at Archbold on a regular basis
6 historically depended on the plant and the
7 circumstances would provide ground coal for the
8 other locations.

9 Q I see.

10 A It would not have been a surprise to Fire Star at
11 that point in time.

12 Q Did Mr. Miller tell that to the Joneses in and
13 around June of 2022, that hey, this is for
14 another plant?

15 A I'm not familiar if he had a personal
16 conversation with him about that, but I did not
17 see that specific information provided in
18 writing.

19 Q And then on Exhibit 4, it looks like in July
20 you're telling them that there's going to be
21 another 2,300 tons required from July to August,
22 right?

23 A That's correct.

24 Q Is that because the Troy situation was
25 continuing?

1 A To my knowledge, yes, that has still a
2 relationship to Archbold providing ground coal
3 product for -- the Archbold plant providing
4 ground coal product for Troy plant.

5 Q But again, what you told was the rise in tonnage
6 followed by the recent rise in demand of the
7 facility or the Archbold facility's product,
8 right?

9 A That's correct. On the same basis that we
10 provided the invitation back and --

11 Q And then you told them that the tonnage
12 requirements will be 300 tons per week from
13 August 22 to the end of the year?

14 A That's correct.

15 Q Okay. Had you ever given them that type of
16 estimate before?

17 MS. RATHKE: Object to the form.

18 BY MR. HUNTER:

19 Q 300 tons a week.

20 A I'm not aware of regular ongoing updates, as I
21 mentioned, prior to all this taking place.
22 Everything was done most of the time on an
23 informal basis through informal telephone
24 conversations through the carrier.

25 It was at this point in time that we

1 were very much making our future requirements
2 known to Fire Star because we wanted to make sure
3 there was no question in their mind whatsoever
4 moving forward about what we required. That the
5 way that we had done business seemed to have
6 broken down and we didn't work in the tons that
7 he needed from them.

8 Q And you had never done that before, made it clear
9 what the requirements were going forward?

10 A I can say that definitively. I know that there
11 was a normal way of doing business, which would
12 have been that informal way. But there was more
13 than likely time to times when we were giving
14 them an indicative idea of what we needed moving
15 forward informally.

16 THEREUPON, Defendant's Exhibit 11 was marked
17 for identification.

18 BY MR. HUNTER:

19 Q Exhibit 11 is an exchange between Tim Jones and
20 Rachel Perkins and others at ACC about deliveries
21 and requirements and purchase orders. Do you see
22 that?

23 A Uh-huh. I do.

24 Q And on the first two pages, this reflects, I
25 think, what you have been telling us, that at

1 least in 2021 until the end of the year, that
2 basically what they were delivering you treated
3 as your requirements, and you just -- whatever
4 they delivered, you closed out a purchase order
5 and started afresh, right?

6 MS. RATHKE: Hold on. I have a
7 question. Was Exhibit 11 produced?

8 MR. HUNTER: It was. It was produced.

9 MS. RATHKE: What Bates number?

10 MR. HUNTER: I don't have the Bates
11 number.

12 MS. RATHKE: Well, why doesn't it have
13 a Bates number?

14 MR. HUNTER: Because I wasn't able to
15 get the Bates number out of my production in time
16 for the deposition. I'm representing to you it
17 was produced. And to my knowledge, you didn't
18 produced this email. Maybe you did.

19 MS. RATHKE: Are you representing that
20 I didn't?

21 MR. HUNTER: No. I don't think you
22 did.

23 MS. RATHKE: We produced this email at
24 ACC109.

25 MR. HUNTER: Okay. Good. So then we

1 shouldn't have a problem.

2 MS. RATHKE: Well, I'm just kind of
3 wondering where this came from since it didn't
4 have a Bates number. I'm just asking.

5 MR. HUNTER: And I told you.

6 MS. RATHKE: Thank you.

7 THE WITNESS: I'm sorry. Can you
8 repeat the question?

9 BY MR. HUNTER:

10 Q This reflects, I think, what you were telling us,
11 that the normal course through 2021 until the
12 end, was that what they delivered you're
13 satisfied met your requirements?

14 MS. RATHKE: Object to the form and
15 foundation.

16 THE WITNESS: I think in this
17 particular instance there was an indication that
18 they had received these loads and that it was
19 normal, typical type of interaction between
20 Rachel Perkins and Fire Star, to say that they
21 should start billing differently with a new
22 number on the next loads they delivered to us.

23 It was pretty much -- yes, this is an
24 example of one of those communications between
25 those -- the two people.

1 BY MR. HUNTER:

2 Q And whether or not they met the full amount of
3 your purchase order, you were satisfied with what
4 they had delivered at least at this point?

5 A In this particular communication for these
6 tons --

7 Q Yes.

8 A -- there's no mention about not having met our
9 requirements during this time period.

10 Q And you told me that that was the course of
11 conduct through until late 2021, right?

12 MS. RATHKE: Hold on. Objection to
13 form being that -- that.

14 THE WITNESS: Are you asking whether or
15 not they corresponded in this exact way?

16 Although I --

17 BY MR. HUNTER:

18 Q No. I'm asking, wasn't it true that the way you
19 treated it through the end of 2021 was what they
20 delivered you were satisfied met your
21 requirements? You weren't nitpicking over the
22 exact amount of the purchase orders?

23 MS. RATHKE: Objection to the form and
24 foundation.

25 THE WITNESS: I think what you're

1 seeing here and what I'm describing is a way to
2 confirm what they should invoice for and what
3 we're going to pay against.

4 The primary communication about what
5 our requirements were would have started
6 typically with an informal communication by
7 telephone or otherwise to say, "We need this much
8 next week, tomorrow," near term type of
9 indications. This is a follow-up to that.

10 Q Right.

11 Remember when you told me that
12 basically through 2021 what they delivered was
13 essentially your requirements, you treated it as
14 your requirements?

15 MS. RATHKE: Objection to the form and
16 foundation.

17 THE WITNESS: I indicated that what
18 they were delivering were reference on usually an
19 email with Ms. Perkins to them to say this is
20 what you delivered, these were our requirements.

21 If there was an informal communication
22 ahead of that that indicated we needed something
23 above that, then -- and they weren't meeting it,
24 that's the piece that I did not see during that
25 time period.

1 BY MR. HUNTER:

2 Q And on until December 16, 2021, there were no
3 communications telling them that there was any
4 specific amount of coal being required as a
5 requirement?

6 MS. RATHKE: Object to foundation and
7 form.

8 THE WITNESS: No. Again, as I
9 understood it to be the case, that was happening
10 on an informal basis.

11 BY MR. HUNTER:

12 Q Okay. And until January of 2022, there was no
13 communication from ACC telling Fire Star what
14 you've delivered hasn't met our requirements,
15 correct?

16 MS. RATHKE: Objection to foundation
17 and form.

18 THE WITNESS: No. I believe all that
19 was happening informally by way of phone calls.

20 BY MR. HUNTER:

21 Q And when you're saying no, you're saying yes, I
22 agree with you, it was happening informally,
23 right?

24 A There was both an informal, and if my memory
25 serves me correctly, we also served them with a

1 letter during the late 2021 time period.

2 THEREUPON, Defendant's Exhibit 12 was marked
3 for identification.

4 BY MR. HUNTER:

5 Q Exhibit 12 is a December 16, 2021 communication
6 and a follow-up January 28, 2022 communication.

7 And again, this was produced to you. I
8 apologize that I don't have the Bates stamp
9 number.

10 Have you seen Mr. Miller's December 14,
11 2021 email in preparing for your deposition?

12 A I don't recall it, to be perfectly honest with
13 you. This is something that I don't recall --
14 recall seeing.

15 Q This email specifically tells them we need 400
16 tons of coal every week. Do you see that?

17 A I see that.

18 Q Okay. And to your knowledge, was this the first
19 time during the contract period that there's any
20 type of written notice to Fire Star of what your
21 requirements would be?

22 A No. I -- I'm just recalling seeing this now.
23 Meaning that I don't recall seeing it previously
24 to this.

25 Q Do you have a recall of any prior --

1 MS. RATHKE: Hold on. I think he was
2 still answering.

3 THE WITNESS: My point being is that
4 I -- I assumed there were other written
5 communications between the two, as I mentioned
6 previously. Normal course of operation was for
7 them to communicate informally about what they
8 needed, but it doesn't bar the fact that they
9 could have and likely did communicate formally
10 from time to time.

11 BY MR. HUNTER:

12 Q Okay. Do you have in mind seeing any email or
13 letter communicating a requirement --

14 A Not off the top of --

15 Q -- before December of 2021?

16 A Not off the top of my mind, no.

17 Q This communicated basically a two-time increase
18 in what Fire Star had been delivering for 2021,
19 right?

20 A I haven't done the math to confirm that that's
21 what their -- I believe the number was 10,000 --
22 between 10,000 to 11,000 tons that they delivered
23 in 2021.

24 Q Right.

25 A But ultimately consider that to be --

1 Q About a two-ton increase.

2 A Probably 800 tons a month, so that this on a
3 400-ton per basis would have been about twice
4 that much, yes.

5 Q Okay. And the reason wasn't because of any
6 uptick in Archbold's requirements for its
7 products, right?

8 A I think, in fact, what it stated in here is that
9 there's an uptick in what Archbold must do to
10 cover the other plants --

11 Q Right.

12 A -- in a traditional role of covering other
13 plants.

14 Q Right.

15 And you're also telling them -- or
16 Mr. Miller is telling them that other plants
17 beyond Albion and Belvidere and Troy have needs
18 that they might require more, right?

19 A That's right. This is the email absolutely that
20 I recall now that was the first time that I think
21 we had something on the record --

22 Q Right.

23 A -- that wasn't informal in terms of what Neil had
24 mentioned was his interaction with Dwayne Jones
25 about him covering other plants.

1 But indeed during this time period,
2 yes, this was stating that as -- was normal
3 during the course of Archbold operations they had
4 to cover other plants and for various different
5 reasons.

6 Q Okay. Do you know what Fire Star's response was
7 to this email?

8 A I don't recall, no.

9 Q Okay. Did they deliver 400 tons a week?

10 A I don't recall specifically.

11 Q Okay. Look at page 2.

12 A Okay. So I see here that it's a confirmation of
13 what took place in January.

14 Q Right.

15 And Rachel is telling them, "Hey, we
16 need more coal," right? "We just need to
17 increase the amount," right?

18 A That's correct.

19 Q Okay. But nothing further by way of complaint or
20 objection in here, right?

21 A The primary complaint is that they didn't deliver
22 enough.

23 Q Okay. And what she said is,

24 "We appreciate the consistency of the
25 deliveries we have received. We just need

1 to increase the amount,"

2 right? Nothing more or nothing less, right?

3 A That's correct.

4 Q Okay. And to your knowledge, were there any
5 other communications from ACC to Fire Star
6 expressing dissatisfaction with the amount
7 delivered during that period?

8 A During this particular time period of January
9 2022?

10 Q Yep.

11 A Or was there --

12 Q Yes.

13 A I can't recall any at the moment. I knew that
14 there -- in various different ways we were
15 reaching out to them to indicate that we weren't
16 getting everything that we needed.

17 Q How were you doing that?

18 A By way of phone calls to a large extent. Again,
19 a lot of -- one of our history with them had
20 taken place was that we communicated by way of
21 phone calls and --

22 Q Through truckers?

23 A I'm not certain that --

24 MS. RATHKE: Are you finished with your
25 answer?

1 THE WITNESS: Yes. I mean, again, I
2 don't recall what other written communications
3 there would have been. We definitely would not,
4 I believe, have been indicating to truckers that
5 we didn't get enough.

6 If we communicated previously with
7 carriers, it was about what we did need from
8 them, not necessarily to feedback any information
9 about what we did not get.

10 THEREUPON, Defendant's Exhibit 13 was marked
11 for identification.

12 BY MR. HUNTER:

13 Q Exhibit 13, a document produced under Bates 400
14 and 401.

15 MS. RATHKE: Of ACC?

16 MR. HUNTER: Yes.

17 BY MR. HUNTER:

18 Q And if you could start on the second page, as
19 emails do sometimes.

20 At the top email there's this reference
21 to Neil working through his non-owner connections
22 at Fire Star to help us get coal. This is dated
23 February 16, 2022.

24 And it talks about trucks going to
25 Belvidere.

1 "Neil also knows the owner of the
2 truck so again huge thanks to him for his
3 connection."

4 Do you know what this is referencing?

5 A This is referencing the coal that was arranged to
6 ship to the Belvidere plant.

7 Q Okay. And that was kind of done without talking
8 to the Joneses; isn't that right?

9 A The only part that I'm aware of was that at the
10 time Neil had a connection with what I believe
11 when it refers to "non-owner connections" is the
12 carrier --

13 Q Right.

14 A -- has arranged for those tons to be shipped,
15 again because we could not process them at the
16 plant in Archbold.

17 Q Okay. But this was something that you all
18 arranged without telling Fire Star, right? You
19 told the carrier, "Hey, let's make arrangements
20 that rather than deliver them to Archbold,
21 deliver it to Belvidere"?

22 A I'm not aware that either Tim or Dwayne Jones
23 were informed of this at the time.

24 Q So what I'm saying is correct?

25 A I'm sorry, restate your question that -- they

1 were not told?

2 Q Yes.

3 A That's in my understanding.

4 Q Okay. So this was a Belvidere requirement, not
5 an Archbold requirement?

6 A What Neil has indicated to me is that he
7 typically would have taken this material and
8 ground it at Archbold.

9 We were using quite a bit of cover coal
10 at that point in time already to account for the
11 fact that we couldn't get tons from Fire Star so
12 that his inefficiency were down so dramatically
13 he couldn't run this material. He had it
14 directed to Belvidere exactly instead.

15 Q So is that a yes?

16 A I'm sorry, repeat your question.

17 Q My question was, so this was a Belvidere
18 requirement, not an Archbold requirement,
19 correct?

20 A This -- in this specific case, if you're
21 referring to the fact that it went directly to
22 Belvidere, yes, you can call that a Belvidere
23 requirement.

24 However, we would have ground it at the
25 plant in Archbold had we had the ability to do

1 so. We didn't because we were using up quite a
2 bit of cover coal that had lower quality, less
3 efficiency for us, that our capacity was reduced.

4 Q Lower quality than the Fire Star coal?

5 A Yes.

6 Q Who was the -- okay.

7 So does the email at the top of Bates
8 401 at the second page, are there two different
9 non-owner connections, or is it just one? Is it
10 just the trucker?

11 A I understood it to be only one.

12 Q Okay.

13 MR. HUNTER: I'm sorry. Give me a
14 second. I'm out of order with my documents. We
15 can take like a five-minute break, if that's
16 okay? If not --

17 MS. RATHKE: Sure.

18 MR. HUNTER: Okay.

19 VIDEO OPERATOR: Going off the record.
20 The time is now 11:35.

21 THEREUPON, there was a brief recess.

22 THEREUPON, Defendant's Exhibit 14 was marked
23 for identification.

24 VIDEO OPERATOR: We are going back on
25 the record. The time is 11:37. This is the

1 beginning of media unit No. 3.

2 BY MR. HUNTER:

3 Q Okay. Exhibit 14, and when you're ready, let
4 me -- I just have a couple questions.

5 A I am ready.

6 Q Pardon me?

7 A I'm ready.

8 Q Okay.

9 MS. RATHKE: Hold on. Objection. The
10 exhibit appears to be incomplete, which is fine.
11 Carry on.

12 BY MR. HUNTER:

13 Q I think you told -- who was Don McLain?

14 A Donald McLain is at the head of commercial sales
15 and marketing for --

16 Q And he's the one who would have more information
17 about requirements?

18 A He has the most complete information about the
19 requirements for our foundry products.

20 Q At that bottom email on Exhibit 14, he's noting
21 his disappointment with the Fire Star's
22 deliveries. Do you see that?

23 A I see that.

24 Q And then at the top email, Mr. Wagner, on his top
25 bullet point, what's he -- what's he referring to

1 there?

2 A The first bullet point?

3 Q Yes.

4 A Which part of the paragraph?

5 Q "We have a contract with Fire Star and
6 they continue to grossly violate knowing
7 our legal team doesn't want to action
8 anything."

9 A My -- I believe at the time the meaning behind
10 that was that he was frustrated by the lack of
11 our asserting our claims with Fire Star.

12 Q Okay. So why didn't the -- legal team didn't
13 want to do anything?

14 A I'm not saying that that's the case.

15 MS. RATHKE: I instruct you not to
16 answer.

17 BY MR. HUNTER:

18 Q Okay. He does tell Mr. McLain to remember that
19 they didn't ship because the Archbold plant
20 forgot to send in the money on the invoices. Do
21 you see that?

22 MS. RATHKE: Objection to foundation.

23 BY MR. HUNTER:

24 Q Do you see that?

25 A Can I go to the bullet point? Can you reference

1 it for me so I know in general what you're
2 referring to? I want to --

3 Q "Keep in mind they recently
4 didn't ship because the Archbold plant
5 forgot to approve their invoices and we
6 sent reminders to them" -- I assume
7 meaning the Archbold plant -- "for over 2
8 weeks to get them out of payment
9 resolution."

10 A What Mike is referring to here is what I had
11 mentioned earlier, was that up until that point
12 in time, the field surcharge was continuing to
13 become an impediment to getting those invoices
14 paid on a regular basis. This is -- this was him
15 referring to that, that issue.

16 Q Okay. Other than what you know from what you
17 heard the lawyer said, you don't have any
18 knowledge as to why ACC didn't want a threat in
19 legal action against Fire Star, as indicated in
20 that bullet point?

21 A No. I think this is a Mike Wagner personal
22 opinion about this. I don't believe necessarily
23 that that was our corporate stance from an ACC
24 standpoint.

25 We had sent previously letters to them,

1 and at this point in time we were on precipice of
2 actually making a case against them.

3 Q And whatever letters you sent to them you've
4 produced?

5 A Yes.

6 THEREUPON, Defendant's Exhibit 15 was marked
7 for identification.

8 BY MR. HUNTER:

9 Q Okay. On Exhibit 15, I just have a question
10 about the first page, which is another email from
11 Mr. Wagner to, including others, Donald McLain
12 and you.

13 The first thing where it says,
14 "Mitigation Potential. Troy: Getting
15 Troy back and running up is huge."

16 Is that because of -- why is that
17 important?

18 A Because of the tons that Archbold was required --
19 required at that time period.

20 Q Archbold wouldn't require so many tons if Troy
21 was back up and running, right?

22 MS. RATHKE: Hold on. I'm asking not
23 to interrupt. The witness was answering the
24 question.

25 Go ahead and pretend the interruption

1 didn't happen and continue on with your answer.

2 THE WITNESS: During this time period,
3 June and July of 2025 (sic), we understood that
4 the requirements that Archbold had as part of
5 their normal coverage for other plants, in this
6 particular case for Troy, was significant, so
7 that resumption of the plant operation at Troy
8 would change our source and plan dramatically.

9 BY MR. HUNTER:

10 Q And what that means, insist that Archbold
11 wouldn't need as much coal, right?

12 A That's correct.

13 Q Okay. The fourth bullet point, who is Zil?

14 A She's a previous internal counsel.

15 Q Okay. And your testimony is that you think that
16 you did try to get Fire Star's attention before
17 June of 2022 about their non-deliveries, right?

18 A In various ways.

19 Q Okay.

20 A Yes.

21 Q And one of the various ways you're telling me was
22 a written communication?

23 A Yeah. I believe that we issued a letter to them
24 in late of 2021, if my memory serves me correct.

25 Q And the other various ways were over the phone,

1 and how else?

2 A I believe it was primarily the text messages that
3 you saw as part between Mike and Fire Star. You
4 saw a message from Ms. Perkins indicating that we
5 didn't get what we needed.

6 Q Uh-huh.

7 A And to a large extent, it was phone calls between
8 Mike Wagner and Neil Miller that indicated we
9 weren't getting our full requirements.

10 THEREUPON, Defendant's Exhibit 16 was marked
11 for identification.

12 BY MR. HUNTER:

13 Q Exhibit 17 is correspondence ACC has produced
14 regarding settlement discussions.

15 MS. RATHKE: 16.

16 BY MR. HUNTER:

17 Q I'm sorry. 16 is correspondence that ACC has
18 produced regarding settlement --

19 A That's correct.

20 Q -- communications, plus an additional letter that
21 I wrote to your counsel. And I just ask you to
22 look at those and tell me if you're familiar with
23 any other settlement correspondence.

24 A I'm trying to see if this is the end of the email
25 string that I'm familiar with. I believe it is.

1 Q Okay. And then have you seen my August 16, 2022
2 letter?

3 A I have.

4 Q Okay. So I've asked you whether or not ACC had
5 ever communicated that they would deliver a
6 letter of credit or an assurance of payment to
7 Fire Star. And do you see that anywhere in here?
8 And if it's somewhere else, I'd ask you to tell
9 me that as well.

10 A I believe that the assurance of payment was based
11 off of our willing to consider a final and best
12 offer from them to settle the suit.

13 That was the request, if I understood
14 it correctly, for us to indicate what it would
15 take for us to settle the suit, and that this was
16 in play in terms of one of those components that
17 would need to be required.

18 What we received was a price offer in
19 addition to a payment assurance.

20 Q Okay. So it's your testimony that ACC was
21 willing to provide a letter of credit or
22 assurance of payment to Fire Star?

23 A Yes.

24 Q Okay. It's just you never communicated that to
25 Fire Star beyond telling them we will consider a

1 best and final offer that you give us for
2 settlement, right?

3 MS. RATHKE: I'm going to object to
4 foundation.

5 THE WITNESS: I'm sorry, would you
6 repeat the question? I just want to make sure I
7 have it here and over there.

8 BY MR. HUNTER:

9 Q You're telling us that you would have given a
10 letter of credit or an assurance of payment to
11 Fire Star. But I think you're also acknowledging
12 that you never told that to Fire Star beyond
13 telling them make us your best offer, which you
14 rejected?

15 A I don't believe the answer was given to say
16 specifically we will give you an assurance of
17 payment. And instead it was give us your final
18 and best offer that included an assurance of
19 payment, but also came along with a price
20 increase.

21 Q How do you think Fire Star was supposed to glean
22 that you were willing to give a letter of credit
23 or an assurance of payment?

24 A I wasn't necessarily -- I wasn't clear that it
25 was the single request that was put to us in

1 terms of moving forward and settling this suit.

2 I suppose, in a way of answering your
3 question, I'm not sure how you answer a question
4 that I'm sure wasn't -- I'm not sure what's being
5 asked, you know.

6 Q Hum. Okay. So do you agree that there was no
7 way that Fire Star could have known that ACC
8 would have given a letter of credit or an
9 assurance of payment --

10 A We --

11 Q -- since you didn't tell them?

12 MS. RATHKE: Object to form and
13 foundation.

14 THE WITNESS: I -- I'm not sure. If
15 they didn't request it, then we did not tell them
16 directly that we could not give a payment
17 assurance.

18 BY MR. HUNTER:

19 Q So now you're saying they just never requested a
20 letter of credit or an assurance of payment?

21 A There was never a request that I'm aware of up
22 until the point of time we filed suit.

23 Q What about them?

24 A I'm not specifically remembering a document where
25 they had requested that after we filed suit.

1 Q Okay. Okay. What about those? What about the
2 ones that are in front of you on Exhibit 16 where
3 they asked for a letter of credit or assurance of
4 payment?

5 MS. RATHKE: Objection to form and
6 foundation, characterization of the document.

7 THE WITNESS: This appears as though as
8 in response to us requesting a final and best
9 offer, best and final offer.

10 BY MR. HUNTER:

11 Q So you didn't take that as the request?

12 A What I'm seeing here is an email on July 27th
13 that starts this string, yes. So that email, in
14 and of itself, asked for an assurance of payment,
15 but also requests that we pay an exorbitant
16 amount for coal through the balance of 2022 as
17 well as throughout 2023.

18 The two were connected with one another
19 so that there was not a question for us to say
20 whether we'd be willing to accept a letter of
21 credit or an assurance of payment. It was, will
22 you do this and this to move forward?

23 Q You all don't like to negotiate. Like you don't
24 like to counter propose things?

25 MS. RATHKE: What? Objection.

1 BY MR. HUNTER:

2 Q I mean, in your business career, when you're
3 trying to settle something with people, you
4 either take it or leave it when they propose
5 something? That's kind of your mode is to offer
6 and do it?

7 A No. That's -- that's no really broad way of
8 stating it. We take each situation on its own
9 merits.

10 Q Okay. What were you going to give them? Like
11 you're telling the jury now that, "Oh, yeah, we
12 would have given them a letter of credit or
13 assurance of payment"? Which one?

14 A I think we would have been willing to arrive at
15 an assurance of payment to finish out the tons in
16 our 2022 contract.

17 Q And what would that have been? Like you telling
18 them not to worry, we're going to pay you, or
19 would you pay them in advance?

20 A I think we would have considered different
21 methods of doing it.

22 Q Yes. But do you have any in mind that you're
23 telling the jury you would have done?

24 A We didn't get that far necessarily --

25 Q Okay.

1 A -- to discuss the different vehicles or methods
2 that we would go about doing it.

3 Q Not a letter of credit, right?

4 A I'm not saying that it wasn't a letter of credit.
5 I'm saying that we didn't have the discussion
6 specifically to say that we would or wouldn't do
7 a letter of credit.

8 Q So you can't tell me if the assurance of payment
9 would have been just "Don't worry, guys, we're
10 going to pay you," as opposed to "We'll pay you
11 in advance"? It didn't get to that point?

12 A It didn't get to that point.

13 Q Okay.

14 MR. HUNTER: I'm trying to get through
15 this, and I think that I can probably get through
16 it in another hour. So what I'd suggest we do
17 is, let me take a break in like five or ten
18 minutes. It's been five minutes. And if I can
19 finish in an hour, I assume we want to do that,
20 or not. I mean, I'm happy to --

21 MS. RATHKE: Yes.

22 MR. HUNTER: Okay. Okay.

23 MS. RATHKE: Anticipating that you'd
24 say that, I told Neil to get here at 1:00.

25 ///

1 THEREUPON, Defendant's Exhibit 17 was marked
2 for identification.

3 BY MR. HUNTER:

4 Q Okay. Exhibit 17 is an email from Mr. Wagner to
5 Neil Miller, you, and others about the coal
6 status at Archbold and Belvidere and also about
7 Fire Star, right?

8 A That's correct.

9 Q Okay. And one of the things he says is that Fire
10 Star was holding back shipments because invoices
11 weren't being paid in a timely manner. Do you
12 see that?

13 A This is in reference to those invoices that were
14 being held because of the fuel surcharge.

15 Q And you understand what Mr. Wagner was saying was
16 correct, right?

17 MS. RATHKE: Why don't -- did you get
18 your answer out?

19 THE WITNESS: The fuel surcharge that
20 created invoice exceptions for us in our system,
21 between March and June, at this point was still
22 affecting invoice payment.

23 BY MR. HUNTER:

24 Q And you understood what Mr. Wagner said there was
25 correct, that they were withholding shipments

1 because of the lack of payment?

2 A That's correct.

3 Q I'll just ask you a couple of questions about the
4 cover calculations.

5 THEREUPON, Defendant's Exhibit 18 was marked
6 for identification.

7 BY MR. HUNTER:

8 Q Exhibit 18 is a document that was produced under
9 Bates 310. And it looks like -- well, you tell
10 me what it is, if you can.

11 A It's appears to be truncated from the original
12 spreadsheet that had additional columns.

13 Q Yes. And that's not my truncating.

14 A Okay.

15 Q This, unlike some of the other ones I showed you,
16 is the complete document.

17 MS. RATHKE: I'm not sure it is.

18 MR. HUNTER: I'm pretty sure it is.

19 THE WITNESS: So what I'm referring to
20 is the idea that that, at the time we filed
21 suit -- it looks like for shipments through the
22 end of, or at least a good portion of, May 2022,
23 this is a calculation of deliveries I would
24 assume at the Archbold plant. It's not titled
25 that way, but nevertheless, there was an include

1 cover coal during that time period up until May
2 of 2022.

3 BY MR. HUNTER:

4 Q If you know, was this prepared in real time, or
5 was this prepared for the lawsuit?

6 A I can't speak to that. Yeah. I don't know if
7 this existed prior to the lawsuit or not.

8 Certainly I had asked Mike during the
9 time periods when we were not getting everything
10 that we need from Steyer -- Fire Star, to make
11 sure that we were keeping a tally on the cost of
12 the coal that we had to buy to cover.

13 Q Was this something prepared by Mike, if you know?

14 A I'm not certain.

15 Q Okay. It goes back to January of '21, and it
16 includes purchases in March of '21.

17 Are those included in your cover
18 calculations?

19 A They are not.

20 Q Okay. So your cover calculations start with the
21 RFI Resources purchases in October of '21?

22 A That's correct.

23 Q Okay. Why did you buy the March and April coal?

24 A Remember the quality issue that required us to
25 quarantine the material for that time period to

1 buy from other suppliers?

2 Q Okay. I do.

3 THEREUPON, Defendant's Exhibit 19 was marked
4 for identification.

5 THE WITNESS: Thank you.

6 BY MR. HUNTER:

7 Q So Exhibit 19, and I'm interested in the last
8 page.

9 Is that your cover calc -- is that your
10 updated cover calculations in the case?

11 A It is.

12 Q And who prepared this?

13 A This was prepared first by Mike, up until the
14 time that he left our company, and since been
15 maintained by me.

16 Q Okay. And you're satisfied this is updated and
17 correct?

18 A Yes, I believe it is.

19 Q Okay. One of the things, if you look at
20 Exhibit 18, this chart doesn't credit the
21 October '21 River Trading coal purchases, which
22 were below the contract price.

23 And I'm just wondering why you all
24 didn't do that?

25 MS. RATHKE: Objection to foundation.

1 THE WITNESS: It's not clear to me why
2 that wasn't included.

3 BY MR. HUNTER:

4 Q Okay. Because you see those were at the lower
5 price than the contract price, right?

6 A I do see this.

7 MS. RATHKE: Hold on.

8 THE WITNESS: Okay.

9 MS. RATHKE: Hold on. Are you saying
10 that Exhibit 19 doesn't credit?

11 MR. HUNTER: Right.

12 MS. RATHKE: Are the things in
13 parenthesis credits?

14 THE WITNESS: They are, but not in the
15 month of October of 2021. This starts with the
16 line right here.

17 BY MR. HUNTER:

18 Q Okay. But that was -- was that cover coal,
19 the -- those October purchases from River
20 Trading?

21 A Those in particular I'm not familiar with, but it
22 would be my assumption they probably were.

23 Q Okay. And it looks like you credit \$110 Alliance
24 coal purchase in December of '22.

25 Do you see kind of towards the bottom?

1 A That's correct.

2 Q How do you get that Alliance coal at \$110?

3 A That's actually a price that was made FOB
4 Pikeville, Kentucky. That \$110 does not include
5 the transportation cost to make it to the
6 Archbold plant.

7 It didn't have sufficient record for
8 that, so it did not include it. And since it was
9 depleted to the claim, I didn't think it was
10 material.

11 Q So are you saying that you did pay transportation
12 beyond the \$110 and you're giving us a break?

13 A It's something that I didn't have proper
14 documentation for.

15 Q Okay. But you're saying that you did pay more
16 than \$110?

17 A We did.

18 Q Okay. And I understand what you're saying.

19 THEREUPON, Defendant's Exhibit 20 was marked
20 for identification.

21 BY MR. HUNTER:

22 Q Exhibit 20 are invoices that were produced by
23 Alliance. And at least these invoices reflect
24 you were only charged \$110, right?

25 A That's correct.

1 Q Okay. But I think what you're telling us is you
2 think that you paid more. You think you did pay
3 the transportation beyond the \$110.

4 A We did.

5 Q Okay.

6 A There's a piece of the transportation that was
7 paid to move the coal to Louisa, Kentucky. And
8 there's a piece of transportation that was paid
9 to move it from Louisa, Kentucky to Archbold,
10 Ohio.

11 Q Did you get this coal under that long-term
12 contract that you had for Neenah, Wisconsin?

13 A Among other plants.

14 Q Okay.

15 A Yes.

16 Q Okay. Okay. Which was \$110 FOB Pikeville?

17 A That's correct.

18 Q Is that where the mine is, as you understand
19 that?

20 A As I understand it, yes.

21 Q Okay. There -- it looks like there was a
22 purchase in June and July, or late June, which is
23 the first two pages of Exhibit 20, AC66 and AC67.

24 A That's correct.

25 Q That wasn't credited on your cover calculation.

1 A What you need to understand about the cover
2 calculation is that when in reality the Alliance
3 coal was moved during June and July of 2022, it
4 was mistakenly recorded into the Archbold plant
5 as case dock coal.

6 Q Okay.

7 A We later backed out of the case receipt to fix
8 that correction, and that's why you see the
9 611 tons, I believe it is, for the Alliance coal
10 being billed out in December of 2022. In reality
11 that coal physically moved in the summer of 2022.

12 Q Okay. Look at the last two pages, ACC68 and 69.
13 It looks like there was at least an invoice in
14 December.

15 A That's for further trial of 100 tons of Alliance
16 coal that we did indeed buy at \$110 and have a
17 truck transport it from Pikeville, Kentucky to
18 Archbold.

19 Q Okay.

20 A What I just referred to happened during the
21 summer and is the earlier tons.

22 Q So is what you're telling me is that Exhibit 66
23 and 67, while it was delivered in June, it -- it
24 wasn't -- it's the coal that was reflected as
25 credited in December?

1 A Exhibit 66 and 67 was part of the Alliance that
2 is reflected on our cover calculation for on the
3 line item 611.82 tons.

4 Q Okay. And the volumes match?

5 A They don't. What you're seeing there is roughly
6 1,200 tons that was moved to case dock at that
7 time during, I believe it was, late June and
8 early July, and 611 of that point 82 moved its
9 way up to Archbold. The remaining roughly 600
10 was left over because the Archbold had a quality
11 issue with what was moved there. We decided to
12 stop moving it and have those 600 tons moved
13 somewhere else, and they are not included in the
14 cover calculation.

15 Q Okay. Good enough.

16 MR. HUNTER: Why don't we take five
17 minutes and let me -- I just want to try to kind
18 of go over what I have, and I think I can finish
19 in less than an hour.

20 MS. RATHKE: Okay.

21 MR. HUNTER: Okay.

22 VIDEO OPERATOR: We're going off the
23 record. The time is 12:06.

24 THEREUPON, there was a brief recess.

25 VIDEO OPERATOR: We're back on the

1 record. The time is 12:11.

2 MS. RATHKE: Excuse me.

3 THEREUPON, Defendant's Exhibit 21 was marked
4 for identification.

5 BY MR. HUNTER:

6 Q So Exhibit 21 is a series of emails regarding the
7 Belvidere coal situation and produced under Bates
8 ACC376 and 377, as well as 253 to 357.

9 A Okay.

10 Q And I want to start on the second page on 377.

11 A Okay.

12 Q So first, this email reflects the problems that
13 you were describing earlier in your testimony
14 with the coal at Belvidere?

15 A There -- yes. There was a requirement at the
16 period of time to provide coal to Belvidere, and
17 Archbold didn't have the capacity to do so
18 because of some of the issues they were having
19 with the coal they were running.

20 Q Okay. And as a result, there was a need to,
21 among other things, bring in Fire Star coal to
22 Belvidere?

23 A That's correct.

24 Q Direct?

25 A That's correct, that Neil had to work through one

1 of his contacts to be able to do that.

2 Q Okay. So on the second page, Bates 377, Neil
3 emails Tim Harris and you and others.

4 "Mike, as I have said before,
5 Fire Star has no clue they are supplying
6 Belvidere. So they wouldn't be able to
7 load more than one load a day. I think it
8 would be great if you could strike a deal
9 with Fire Star for help that way. I don't
10 want to compromise my relationship with my
11 primary supplier of coal."

12 And then, you know, he goes on.

13 What is -- what is Neil referring to
14 there?

15 A I'm not certain exactly what he's referring to
16 there, other than that was the first indication
17 that we had that nobody at Fire Star, including
18 the Joneses, were aware of this.

19 Then Mike responded to say that, well,
20 if we send a truck down there to pick it up and
21 pay for that trucking, will that work?

22 And that's when you see Neil and his
23 boss saying this would be better for you, Mike,
24 to handle.

25 And Mike says, I'm sorry, I

1 misunderstood the arrangements and the agreement
2 that was in place with Fire Star at that point in
3 time.

4 Q Okay. What does that mean? Like how did he
5 misunderstand the relationship and what was he
6 supposed to do?

7 A It was my understanding that Mike believed that
8 the Joneses were aware of what was happening at
9 that point in time.

10 Q Okay. So who decided not to tell them?

11 A I don't know that anybody decided not to tell
12 them specifically. I took this all to mean that
13 this non-owner contact at Fire Star was someone
14 that was in the know in terms of business that
15 was happening with their company.

16 So that's when this email came out.
17 This is when Mike basically had stated, listen, I
18 wasn't aware of the arrangements that were being
19 made. And pretty much from that point forward, I
20 don't believe that any further shipments were
21 made.

22 Q Okay. It looks like Neil is encouraging you all
23 to deal with Fire Star, right?

24 A That's correct.

25 Q But it doesn't look like he's the one who decided

1 not to deal with Fire Star. I'm just wondering
2 like how that happened?

3 A I believe what you're seeing here is for Neil to
4 say, "Listen, I've done what I think I can here.
5 I'm passing it along to you."

6 Q Was direction given to Neil to get that coal to
7 Belvidere, to get that Fire Star coal to
8 Belvidere?

9 A I think Neil was aware of the fact that Belvidere
10 needed coal --

11 Q Right.

12 A -- and the fact that his plant wasn't capable of
13 grinding it for them, so that he used our
14 relationship he had with somebody, again
15 non-owner connection that he referred to them as,
16 at Fire Star to help that along.

17 Q And was that the trucker, the carrier, that you
18 referred to?

19 A Through other emails, that's who I understood it
20 to be.

21 Q Okay.

22 A It wasn't stated directly.

23 Q And what happened after this? Did the shipment
24 stop?

25 A Yes. It was during the time period of February

1 through April that those 271 tons that I
2 mentioned had moved.

3 Q So there are 270 whatever tons were moved without
4 Fire Star's knowledge through an arrangement with
5 the trucker, but then after this email though
6 stopped; is that correct?

7 MS. RATHKE: Object to foundation.

8 THE WITNESS: I think that you're
9 basing that question on the assumption that Fire
10 Star knew nothing about it. That wasn't clear.
11 It wasn't the tone.

12 BY MR. HUNTER:

13 Q Oh. I thought you just told me they didn't.

14 A What I'm saying is that it wasn't clear to me at
15 the time that either Tim Jones or Dwayne Jones
16 knew about it.

17 What wasn't clear at the time was
18 whether or not the connection that Neil had, this
19 person that we weren't aware of, was acting on
20 behalf of them.

21 Q Who was that?

22 A I don't know who they were specifically. I
23 believe, like I said through looking at the email
24 correspondence, that it was one of the carriers
25 that worked with him.

1 Q Okay. But you understood that a carrier wasn't
2 representing Fire Star, right?

3 MS. RATHKE: Object to the form and
4 foundation.

5 THE WITNESS: I understand that a
6 carrier is not representing them. We -- it
7 appeared at the time as though that carrier was
8 in communication with Fire Star for the very same
9 reasons that we could indicate to a carrier in
10 Archbold what our requirements would be for the
11 next week and the next two weeks, and that
12 information would eventually flow through to Fire
13 Star.

14 That was the same presumption that I
15 believe we were making at the time, that we could
16 utilize that sort of conversation here.

17 BY MR. HUNTER:

18 Q Well, did you conclude one way or the other as to
19 whether or not Fire Star knew?

20 A It appeared to us, when Neil made the statement
21 that Fire Star is not aware of this, is when Mike
22 jumped in to say, "Listen, if I send a truck,
23 will that change something?"

24 If we send a truck down to pick
25 something up from them, they know all the sudden

1 where it's going, right? And that's when Neil
2 said, "Why don't you go ahead and talk to him
3 about it."

4 And Mike said, "We're not going to do
5 this moving forward."

6 It's what is behind the scenes. We had
7 no tons beyond that point in time with 271 that
8 went through.

9 Q So doesn't that mean you concluded that indeed
10 Fire Star didn't know about these deliveries?

11 A What I'm relating to is our understanding at the
12 time of these emails.

13 Q Right.

14 A So yes.

15 If you look very simply at the fact
16 that Neil stated in his April 6th email that
17 Fire -- Fire Star has no clue they're supplying
18 Belvidere. My point being is that to that point
19 in time it wasn't clear to us that that was the
20 case.

21 Q Sitting here today as the designee for ACC, have
22 you reached a different conclusion?

23 A From this email --

24 MS. RATHKE: Hold on. Objection as to
25 being designee on -- with regard to this

1 question. I'm not quite sure I understand, so
2 I'm just going to object for the record.

3 BY MR. HUNTER:

4 Q Okay.

5 A Based off of this particular email, that email
6 that Neil refers to the fact that they had no
7 indication that they were supplying the Belvidere
8 plant? Yes, that's the conclusion that I drew
9 and I draw today.

10 Q Okay.

11 THEREUPON, Defendant's Exhibit 22 was marked
12 for identification.

13 BY MR. HUNTER:

14 Q So Exhibit 22 is an invoice you all produced from
15 Case Coal Sales, which I believe was an
16 indication of one of your cover purchases.

17 A Do you mind if I refer to another exhibit that
18 has our cover purchases --

19 Q Sure.

20 A -- summarized?

21 Q Yes, it should be on top of that. Yes, that's
22 that at the last page.

23 A Okay. So this is an invoice for which part of
24 the tons of this were included in our cover
25 calculation.

1 Q Okay. Which part?

2 A Let me find the coal reference here.

3 You see the lightly gray shaded lines,
4 the first of which is Case Coal Sales in July of
5 2022?

6 Q Yep.

7 A See that mistakenly 693 tons were marked in our
8 system as received from them into the plant.

9 In reality they only supplied 82 tons
10 of that amount into the plant, and we later
11 backed out 424.

12 The difference between obviously the
13 fact that you back out 424 from 693 is not 82, is
14 that mistakenly in terms of how our purchase
15 orders are utilized, we utilized that purchase
16 order to pay for some of the transportation that
17 Case made for the material into Louisa, Kentucky.

18 So ultimately Case Coal only supplied
19 82 tons of coal off of this invoice into the
20 Archbold plant.

21 Q Okay. And if you look at the delivery tickets
22 that are attached. Don't you agree that at least
23 some of these amounts that were charged to cover
24 were actually delivered to Belvidere?

25 A I'm sorry. I missed the fact that was a March

1 2022 invoice. I thought it was referring to the
2 one from the summer of 2022. I'm trying to find
3 the Case Coal Sales from March on the cover
4 calculation.

5 Q There's one -- there are two at the very top.

6 A Yes, that -- I'll be honest with you. That
7 appears to be an oversight where I just included
8 three truck loads going to the Belvidere plant
9 and going to Archbold.

10 So out of the 140, it would have been
11 closer to 49 went to Archbold, and probably
12 something like 90 is going to the Belvidere
13 plant.

14 Q Well, this is a period of time where you needed
15 coal for Belvidere, and you would have supplied
16 it from Archbold if Archbold could grind it. But
17 since it couldn't, you just made deliveries
18 direct from suppliers who supplied Archbold and
19 you made it direct to Belvidere, right?

20 A It's really completing two different concepts
21 there.

22 If we could get quality coal in this
23 particular case from Case into the Belvidere
24 plant, then it would have been shipped there
25 direct from those suppliers and have nothing to

1 do with Fire Star.

2 In this particular case, I'm not
3 certain why a purchase order that included tons
4 in our system for Archbold show delivery tickets
5 going to Belvidere.

6 Q Was Case a supplier for Belvidere or primarily a
7 supplier for Archbold?

8 A Neither. They were never a primary supplier for
9 anyone.

10 Q Did they ever supply Belvidere other than in this
11 one particular instance in March?

12 A I don't recall.

13 Q Okay.

14 A I'm not saying they didn't. I just don't have
15 recollection of any document showing that they
16 did.

17 Q Okay. And is Case Coal separate from Alliance?
18 You were telling me about a Case Coal situation.
19 This is the actual Case Coal company?

20 A They're a broker who operates on the river
21 system. They trans local from a logistics
22 handling standpoint as part of their business,
23 but they can also supply it as well.

24 In this capacity, for this invoice,
25 they were supplying coal.

1 THEREUPON, Defendant's Exhibit 23 was marked
2 for identification.

3 BY MR. HUNTER:

4 Q Okay. As we've mentioned, the Troy requirements
5 contributed to the coal needs that ACC
6 communicated to Fire Star in June of 2022, right?

7 A That's correct.

8 Q And I think you're telling me you're not aware of
9 whether it was disclosed to Fire Star, but you
10 think it was?

11 A From indications that were given to me by Neil
12 Miller, it was always an understanding that
13 Dwayne Jones had that the plant at Archbold
14 covered other plants.

15 Whether in that particular case that we
16 indicated to them there was initial requirements
17 for Troy, I have not seen a document to indicate
18 that.

19 Q And if you look at the middle of this document --
20 and this is a document that Mr. Wagner sent to
21 you and Neil and others at ACC, right?

22 A Uh-huh.

23 Q He's telling you what the current coal plan needs
24 at Archbold are for the next four weeks on
25 June 10 of 2022, and he comes up with a total of

1 2,391 tons, right?

2 A That's correct.

3 Q And that's the exact amount that you told Fire
4 Star you needed for June, right?

5 A I believe that corresponds to that June 13th
6 through July 13th period. Yes, sir.

7 Q It was exactly 2,319 tons. And of that amount,
8 1,119 tons was from Troy, and 1,272 was for
9 Archbold, right?

10 A I think we estimated that Troy to be 1,000 tons
11 previously.

12 Q And the 1,119 tons that were for Troy usage,
13 that's what you told Fire Star -- and when I say
14 "you," I mean ACC -- told Fire Star was for an
15 increase in the demand for Archbold's product,
16 right?

17 A That's correct.

18 MS. RATHKE: You should probably keep
19 your voice up.

20 THE WITNESS: Sorry.

21 MR. HUNTER: Are you getting this?

22 THE REPORTER: I am.

23 MR. HUNTER: That's all I have,
24 Mr. Wentz. Thank you.

25 THE WITNESS: Thank you.

1 MS. RATHKE: I have no further
2 follow-up questions for you at this time.

3 So I suggest we go off the record and
4 let you take your mic off so you don't walk off
5 with it.

6 VIDEO OPERATOR: We are going off the
7 record. The time is 12:29. This concludes the
8 testimony. The number of media used is three and
9 will be retained by Veritext.

10 THEREUPON, the deposition concluded at
11 12:29 p.m.

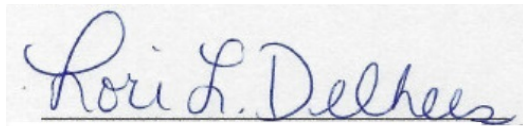
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CERTIFICATE

STATE OF OHIO)
) ss.
COUNTY OF ERIE)

I, Lori L. Delhees, Stenotype Reporter and Notary Public within and for the State aforesaid, duly commissioned and qualified, do hereby certify that the within named ARIC WENTZ was by me, before the giving of his deposition, first duly sworn to testify the truth, the whole truth and nothing but the truth in the cause aforesaid; that the deposition as above set forth was reduced to writing by me by means of Computer-Aided Transcription; that the said deposition was taken pursuant to Notice and was completed without adjournment; that I am not a relative or attorney of either party or otherwise interested in the eventual outcome of this action.

IN WITNESS WHEREOF, I have hereunto set my hand and seal of office at Sandusky, Ohio this 8th day of May, 2023.



Lori L. Delhees
Notary Public
P. O. Box 1067
Sandusky, Ohio 44870

My commission expires 11/24/2027

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Federal Rules of Civil Procedure

Rule 30

(e) Review By the Witness; Changes.

(1) Review; Statement of Changes. On request by the deponent or a party before the deposition is completed, the deponent must be allowed 30 days after being notified by the officer that the transcript or recording is available in which:

(A) to review the transcript or recording; and

(B) if there are changes in form or substance, to sign a statement listing the changes and the reasons for making them.

(2) Changes Indicated in the Officer's Certificate. The officer must note in the certificate prescribed by Rule 30(f)(1) whether a review was requested and, if so, must attach any changes the deponent makes during the 30-day period.

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THE ABOVE RULES ARE CURRENT AS OF APRIL 1, 2019. PLEASE REFER TO THE APPLICABLE FEDERAL RULES OF CIVIL PROCEDURE FOR UP-TO-DATE INFORMATION.

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COMPANY CERTIFICATE AND DISCLOSURE STATEMENT

Veritext Legal Solutions represents that the foregoing transcript is a true, correct and complete transcript of the colloquies, questions and answers as submitted by the court reporter. Veritext Legal Solutions further represents that the attached exhibits, if any, are true, correct and complete documents as submitted by the court reporter and/or attorneys in relation to this deposition and that the documents were processed in accordance with our litigation support and production standards.

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